



FEDERAL BUREAU OF PRISONS

STATEMENT OF WORK

CONTRACT SECURE JUVENILE FACILITY WITH WORK RELEASE

March 2025

TABLE OF CONTENTS

INTRODUCTION	1
CHAPTER 1: ADMINISTRATION	6
CHAPTER 2: FISCAL MANAGEMENT	9
CHAPTER 3: PERSONNEL	12
CHAPTER 4: STAFFING PATTERNS	19
CHAPTER 5: TRAINING	21
CHAPTER 6: FACILITY	24
CHAPTER 7: LIFE SAFETY	26
CHAPTER 8: ELECTRICAL SAFETY	27
CHAPTER 9: TOXIC, CAUSTIC, AND FLAMMABLE MATERIALS.....	29
CHAPTER 10: PEST CONTROL	31
CHAPTER 11: SANITATION AND HYGIENE	32
CHAPTER 12: SECURITY AND CONTROL	33
CHAPTER 13: SUPERVISION OF JUVENILE OFFENDERS.....	36
CHAPTER 14: JUVENILE OFFENDER DISCIPLINE	37
CHAPTER 15: ADMINISTRATIVE REMEDY PROCEDURES.....	42
CHAPTER 16: REFERRAL AND INTAKE PROCESSING.....	43
CHAPTER 17: SERVICES	47
CHAPTER 18: JUVENILE OFFENDER RIGHTS	52
CHAPTER 19: CASE MANAGEMENT	54
CHAPTER 20: PROGRAMMING OF JUVENILES	58
CHAPTER 21: RECORDS AND REPORTS	65

CHAPTER 22: ESCAPES, DEATHS, AND SIGNIFICANT INCIDENTS.....	67
CHAPTER 23: RELEASE FROM SERVICE OF SENTENCE.....	69
CHAPTER 24: SEXUAL ABUSE/ASSAULT PREVENTION AND INTERVENTION...	70
CHAPTER 25: JUVENILES UNDER SUPERVISION.....	72
CHAPTER 26: JUVENILE WORK RELEASE PROGRAMS.....	73
CHAPTER 27: RESEARCH AND EVALUATION.....	76
CHAPTER 28: INSPECTIONS	77
LIST OF ATTACHMENTS	83

INTRODUCTION

A. BACKGROUND

This Statement of Work (SOW) sets forth the contract performance requirements for the comprehensive management and operation of a secure juvenile correctional facility with work release. The Bureau of Prisons (Bureau) enters into agreements with state and local governments, and into contracts with private organizations, to provide for the secure care and confinement of federal juvenile offenders in correctional facilities. Contractors are responsible for ensuring the safety, care, security, control, accountability and custody of juvenile offenders, and providing for public protection through a system of written policies, procedures, and practices based on recognized juvenile correctional practices.

B. OBJECTIVE

The objective of this contract is to provide rehabilitation, re-entry services, and accountability for federal juvenile offenders in secure and work release settings, which address public safety and protection. These offenders include those sentenced to the custody of the Bureau or placed in a facility as a condition of supervision by Federal Courts.

C. EXPLANATION OF TERMS

1. **Bureau of Prisons (Bureau):** A component of the Department of Justice, providing correctional services to confined adult and juvenile federal offenders, through a well-managed, varied network of prison and community-based programs. The Bureau "protects public safety by ensuring federal offenders serve their sentence of imprisonment in facilities which are safe, humane, cost-efficient, and appropriately secure, and provide reentry programming to ensure their successful return to the community."

2. **Residential Reentry Sector Administrator (RRSA):** The Bureau's Residential Reentry Management Branch is divided into 3 geographic sectors. The RRSA is responsible for all residential and juvenile contract functions, services, and operations within one of the 3 respective sectors.

3. **Assistant Residential Reentry Sector Administrator (ARRSA):** Normally, each region has an ARRSA to whom the RRSA has

delegated administrative oversight responsibility for field Residential Reentry operations and juvenile contracts within the region.

4. **Residential Reentry Manager (RRM):** The Bureau employee who is the Contracting Officer's Representative (COR), and is empowered to make judgments and decisions on residential and juvenile contract compliance.

5. **Residential Reentry Contract Oversight Specialist (COS):** Contract Oversight Specialists, under the direction of BOPs, are responsible for maintaining oversight control of residential and juvenile contract facilities through routine contact, correspondence review, announced and unannounced on-site monitoring, and technical assistance visits.

6. **Juvenile Services Specialist (JSS):** The JSS maintains overall responsibility for all juvenile services for the Bureau of Prisons and is the subject matter expert on juvenile services for the Bureau of Prisons.

7. **Contractor:** The provider of services described in this SOW. Typically this is a tribal, state, county or city government, Department of Corrections, or a private organization.

8. **Contracting Officer (CO):** The Bureau employee empowered to award, administer, and cancel contracts on behalf of the United States Government.

9. **U.S. Probation Officer (USPO):** An officer of the Federal Courts responsible for supervising federal juveniles placed on probation by Federal Courts. USPOs also supervise mandatory releases and those released on parole by the United States Parole Commission (USPC).

10. **Facility:** The correctional institution in which the contractor houses juvenile offenders, also referred to as detention center, law enforcement center, training school, correctional center, etc.

11. **Juvenile Offender:** The terms "juvenile," "juvenile offender," "offender," "juvenile resident," "student," and "resident" are used interchangeably and are considered synonymous. Juveniles in the custody of the Bureau are also referred to by such terms as "those in the custody of the Bureau

of Prisons," "Bureau residents," "Bureau juveniles," etc. The Juvenile Justice and Delinquency Prevention Act (JJDPa) (18 U.S.C. 5031 through 5042) specifies the requirements for juveniles who have not attained their eighteenth birthday and those sentenced under the JJDPa as juvenile delinquents. The requirements are different for each of the three groups of offenders:

- Those who have not attained their 18th birthday;
- Those who have attained their 18th birthday but have not attained their 21st birthday; and
- Those who have attained their 21st birthday.

18 USC 5039 states, "No juvenile committed, whether pursuant to an adjudication of delinquency or conviction for an offense, to the custody of the Attorney General may be placed or retained in an adult jail or correctional institution in which he [or she] has regular contact with adults incarcerated because they have been convicted of a crime or are awaiting trial on criminal charges."

Secure and community-based facilities are both considered to be correctional facilities.

The Bureau Program Statement on Juvenile Delinquents, Juvenile Justice and Delinquency Prevention Act, details requirements for the confinement of juveniles.

The Bureau is **not** the legal guardian of juveniles in these facilities. Guardianship remains with the parents or legal guardian.

12. Types of Offenders:

a. Transfers from Other Secure Juvenile Facilities:

These juveniles are committed to the custody of the Bureau of Prisons. They have served a portion of their sentence in another Bureau juvenile facility.

b. Direct Court Commitments: These offenders are committed to the custody of the Bureau of Prisons by court order and have been designated, by the appropriate BOP Office, to serve their term of confinement in a Bureau juvenile offender facility.

c. Supervision Cases: These offenders are referred

to the Bureau for placement by a USPO or United States Pretrial Services Officer (USPSO) due to conditional release supervision requirements. The supervision requirements may be by order of a Federal Court, the U.S. Parole Commission, or Federal Pre-Trial Services. The Bureau may pay for room and board (except for Pre-Trial cases) during the period of time spent in the facility on conditional release.

d. **Probationers:** Offenders required to reside in and adhere to program requirements of the facility as a condition of probation for the duration of their incarceration, as specified by the Court.

e. **DC Offenders:** Offenders convicted of District of Columbia (D.C.) code offenses before attaining the age of 22 and whom the court determined appropriate for treatment pursuant to the District of Columbia Youth Rehabilitation Act (DCYRA). This excludes those sentenced for murder.

NOTE: *There is discussion in this SOW which applies exclusively to a portion of the population of juvenile offenders placed in the facility, but not to others.*

Other discussion refers exclusively to supervision cases -- probationers, supervised releases, mandatory releases, and parolees. They are referred to by such terms as "juveniles under supervision," "supervision cases," etc.

D. SCOPE OF WORK

The contractor must provide the necessary facilities, equipment, personnel and staff training which will satisfy the delivery of services requirements outlined within this SOW. The contractor must ensure programs are conducive to the rehabilitative needs of male and/or female juveniles and do not compromise requirements to maintain sight and sound separation of juveniles from adult offender populations.

The contractor must develop written operational policies and procedures adhering to accepted juvenile specific correctional practices as determined by American Correctional Association (ACA) standards, PREA, and the Bureau.

If not already accredited by the ACA, the contractor must use the most current Standards for Juvenile Training Schools augmented by Bureau policy and/or procedure as a guide in

developing and implementing written policies and procedures, pending accreditation. Therefore, reference will be made to ACA Standards and Bureau policy and/or procedure throughout this SOW. The Bureau policy references in this SOW are available through the Bureau's Internet Web Site at <http://www.bop.gov>.

Should a conflict exist between this SOW, ACA standards and Bureau policy and/or procedure, the Contracting Officer, if prior to contract award, or the COR in conjunction with the Contracting Officer, following contract award, will serve as the decision-maker in such conflicts.

CHAPTER 1: ADMINISTRATION

It is the responsibility of the contractor to maintain current documentation to substantiate the requirements in this SOW are met.

A. The contractor is to provide authorization for the establishment of the facility. Such statute provides the legal framework within which the facility's administrative structure, philosophy and policies are developed, as well as the basis for assessing performance and identifying needed changes in organization. This is to include a written mission statement and organizational chart.

B. The contractor must have a current Operations Manual containing written policies and procedures which will be accessible to all staff. It is the responsibility of the contractor to update the Operations Manual and ensure staff review this manual on an annual basis. In addition to written policies and procedures, the Operations Manual must explain the systems used by the Chief Executive Officer (or other designated decision-maker) to ensure compliance. This includes, but is not limited to the following:

- The system(s) used to review and update all policies, procedures, and programs annually;
- The system(s) used to monitor, inspect, review and implement corrective actions as deemed necessary in the course of operating a facility for federal juvenile offenders;
- The system(s) used to disseminate updated information to appropriate staff and administrators regarding policy changes, as deemed necessary;
- The system(s) used to disseminate pertinent information to juvenile offenders, parents, legal guardians, or other custodians. Communication must be in the language of the approved parties, including the juvenile;
- The system(s) used to encourage positive contact with the general public, while still preserving the offender's privacy and the facility's safe and secure environment; and
- The system(s) used to conduct internal annual operational audits, using this SOW as the guideline, with written findings and corrective action plans.
- The system(s) used to foster a successful transition from the juvenile center to family, social supports, and the

community.

C. The contractor must conform to all applicable zoning ordinances, and building, sanitation, life safety, health, and fire codes. Documentation will be made available to confirm adherence. Additionally, the contractor must ensure the facility is not located in an area where public concern or opposition would have an adverse effect on the community or residents. The contractor must identify nearby (i.e., within a half-mile radius) facilities whose closeness to the secure and non-secure juvenile facility might raise public concern, including but not limited to schools, day-care centers, and other residential facilities.

D. The contractor must ensure Bureau-identified staff members attend and participate in meetings, training sessions, monitoring visits and conferences scheduled by the Bureau.

E. The Bureau is to be the final authority in determining appropriate levels of staffing and services at each site.

F. The contractor must have fax and internet capabilities.

G. The contractor shall conduct monthly staff meetings to foster communication, establish policy, discuss problems, ensure SOW compliance, and accomplish program objectives. Training shall be conducted on accountability during each meeting. The contractor shall document the meetings with written minutes, and include the date, time conducted, and staff members' names in attendance.

H. The contractor shall develop a quality control plan (QCP), an internal system for monitoring program compliance. A written QCP summary must be provided to the COS quarterly.

I. P.L. 108-79, Prison Rape Elimination Act of 2003 (PREA), seeks to eliminate sexual assaults and sexual misconduct of offenders in correctional facilities to include all residential reentry and juvenile contract based facilities. Administration must maintain a zero-tolerance for sexual abuse and create a specific policy addressing PREA compliance. The facility must be in full compliance with PREA standards which apply to juvenile facilities. Contractor compliance with standards will be measured during contract monitoring of facilities. Additionally, a PREA coordinator must be designated in writing and submitted to the Bureau at the time of the contract

proposal. In accordance with provisions of PREA, the contractor must be audited by a certified PREA compliance auditor. The audit will be at no additional cost to the Bureau. Copies of all audit material will be provided to the Bureau.

CHAPTER 2: FISCAL MANAGEMENT

It is the responsibility of the contractor to ensure written policies and procedures are developed, implemented and monitored in the area of FACILITY FISCAL MANAGEMENT.

A. It is also the responsibility of the contractor to maintain complete and accurate documentation of all financial transactions. Written policies and procedures must also include audits of all facility financial operations to include the following requirements:

1. A system(s) for maintaining an accurate account of facility expenditures, Commissary Operations procurements, Juvenile Trust Fund, or other special funds.

2. A system(s) to ensure the contractor submits all vouchers for reimbursement to the Residential Reentry office by the tenth working day of each month. The Standard Form 1034 Public Voucher for Purchases and Services Other Than Personal includes the following:

- Name and Address of Contractor;
- Contract Number and Facility Code;
- Date of Voucher;
- Voucher/Invoice Number;
- Name and Address of Residential Reentry Office;
- Date of Service;
- Description of Service;
- Total Number of Offender Days;
- Offender Day Rate;
- Amount of Reimbursement; and
- Attached Alphabetical Rosters of Juveniles by name, Register Number, Date of Arrival/Release and Number of Offender Days billed for each offender.

3. A system to ensure the contractor or designated Certifying Officer certifies the accuracy of all financial invoices before submitting them to the BOP. A statement certifying services have been rendered must be included along with the invoice. The statement must have the contractor's original signature or the Certifying Officer. The statement shall include total offender days for the month, offender day rate, and a total amount of the invoice, as shown below:

I certify services have been rendered as indicated on the above invoice and payment is now due for care and custody of federal juvenile offenders during the month of _____.

$$\frac{\text{Juvenile}}{\text{TOTAL OFFENDER DAYS}} \times \frac{\text{Juvenile}}{\$ (\text{OFFENDER DAYS RATE})} = \$ \text{TOTAL}$$

CERTIFYING OFFICIAL	DATE SIGNED
TITLE	

4. On a monthly basis, by the tenth working day of the month, the contractor must submit **Standard Form 1034, Public Voucher for Purchases and Services Other Than Personal**, for reimbursement of approved expenditures for the following services provided to federal juvenile offenders, such as:

- **Release Gratuity, Transportation, and Clothing.** The contractor must provide an itemized listing of the release gratuity, transportation, and clothing to the BOP for approval prior to issuance.
- **Staff Supervision for Hospitalized Juvenile Offenders.** The contractor must be financially responsible for providing all staff supervision as necessary for hospitalized juvenile federal offenders.
- **Medical Services.** Requests for routine medical care for juveniles, in the custody of the Bureau are to be itemized and approved by the BOP prior to service. Requests for approval are to be submitted on the Request for Approval for Medical Treatment Form, as attached to this SOW (see attachment A).

Emergency medical and psychiatric care must be provided immediately to preserve the life and health of the juvenile. The BOP must be notified of the treatment immediately and must be involved in planning for subsequent treatment.

B. The Government will only reimburse the contractor, not the actual provider of the treatment, for authorized medical care, dental care, and medications. The appropriate facility medical staff will be responsible for verifying the accuracy of invoices submitted for reimbursement and ensuring services were received as stated on the invoices.

C. A medical voucher will be prepared listing the health care provider(s) and total amount due to each vendor. The voucher will list alphabetically the name, register number, treatment rendered, date of service, and a total amount billed, for each juvenile offender. Original invoices from the health care provider must be attached to the medical voucher. A statement certifying accuracy of the medical voucher is to be signed by the appropriate facility "Certifying Officer" at the bottom of the medical voucher. A complete copy of all documentation as a secondary attachment to the voucher must be included, along with an original signature for invoice certification.

D. The contractor will be responsible for providing each juvenile with a complete physical examination within 14 days of arrival at the facility. The Bureau is only responsible for medical costs for those juveniles committed to the custody of the Bureau. The contractor will obtain instructions from the USPO for emergency medical care for juveniles not committed to the Bureau and for any other required medical care. If yearly physical examinations are required by law, the Bureau will pay the costs of those examinations for all juveniles.

CHAPTER 3: PERSONNEL

All federal juvenile offenders in secure placements must be provided Direct Supervision. It is the responsibility of the contractor to provide supervision for all federally sentenced juveniles in custody, 24 hours a day, seven days a week, 12 months a year.

A. The contractor must have written personnel policies and a management system consistent with the juvenile justice systems philosophy of rehabilitation.

B. The services required in this SOW must be performed by paid staff who have been properly screened and trained prior to having contact with juvenile offenders. In addition to paid staff, the Bureau allows the use of unpaid individuals, such as mentors and/or volunteers, who have been approved by the BOP. Where appropriate, mentors should be utilized to work one-on-one with juveniles in achieving program goals. Similar functions may be provided to groups of juveniles by individual volunteers and volunteer groups. Mentors and volunteers will not be used in lieu of direct supervision staff.

Juvenile mentors, individual volunteers and volunteer groups play a very important role in the rehabilitative process for juvenile offenders. Written policies and procedures are to, with the approval of the BOP, address recruitment, screening, background checks, and provisions for providing orientation and training to mentors and volunteers prior to their contact with juvenile offenders. Written policies and procedures must also require mentors, volunteers, or volunteer groups provide services under the direction and guidance of paid facility staff members, not have contact with juveniles outside the secure facility except in their official capacity, and have no access to confidential juvenile files.

The utilization of diverse cultural, spiritual, and educational groups, choirs, motivational speakers and positive role models is encouraged. All programs must be approved by the BOP to ensure evidence based programs are the focus of the outside groups.

The contractor must have a written "Volunteer Manual" and a Mentor Manual which must be accessible to each mentor, volunteer, and volunteer group. Both manuals are subject to the

approval of the BOP and CUSPO.

The contractor must document and maintain records of activities involving mentors, volunteers and volunteer groups. Information pertaining to activities and volunteer hours must be incorporated into a monthly summary report and be available to the BOP upon request.

The contractor must have written policy and procedures for a public information program which offers ongoing, positive communication and interaction between the facility and the local community, elected officials, law enforcement and citizens. All press releases must be approved by the Bureau if any reference to a juvenile is planned, in accordance with the Program Statements for News Media Contacts and Juvenile Delinquents.

In addition to community outreach, the contractor must establish a Community Relations Board (CRB) which must meet at least four times each calendar year. The BOP and ARRSA must be standing members on the CRB.

The CRB is a means of mutual communication and support between the facility and local communities. While the CRB has no formal advisory function to the facility, its purpose is to serve as a two-way communication link between the facility and community leadership, and to advance public education, understanding, and advocacy for issues concerning the facility.

The CRB benefits the facility and the community by:

- Increasing public awareness about the mission of the facility and the BOP;
- Determining the availability of community services for the facility;
- Coordinating facility operations with local law enforcement;
- Assessing the impact of the facility on the community; and
- Increasing the facility's involvement in community affairs.

The Contractor must develop bylaws containing a clear statement of the CRB's objectives, define (and limit) the CRB's role in the internal affairs of the facility, provide a structure for CRB operations, define who may be a member, explain how members are selected, and set term lengths for each officer. CRB members may work closely with local law enforcement, government,

business, civic, education and training, health care, pre-release, and religious agencies and organizations.

Initially, the facility director may select CRB members. The facility director must base his or her assessment of the individuals' potential to develop opportunities for mutual assistance and support. The subsequent selection process must be addressed in the CRB's bylaws.

Consideration must be given to citizens representing:

- Local and federal law enforcement;
- City, County, or township government;
- Business and Civic organizations (Chamber of Commerce, Lions, Rotary, Kiwanis);
- Council of churches; and
- School boards, healthcare organizations, and media groups.

C. The contractor must reference American Correctional Association Standards as the basis for providing written policies and procedures in the area of personnel. This includes, but is not limited to the following:

- Employee job descriptions, including title, experience, and education requirements;
- Employee Equal Opportunity;
- Employee records and evaluations;
- Employee standards of conduct;
- Employee conditions for probationary and permanent employment;
- Employee recruitment and retention plan;
- Employee grievance process;
- Employee orientation and training; and
- Employee screening and background.

D. The contractor shall ensure the facility's director possesses, at the very minimum, a baccalaureate degree in social or behavioral science and at least five years of experience in the juvenile justice system, three years of which must be in a management position. The contractor is also responsible for identifying all key personnel with the following conditions:

- Key personnel must be full-time employees.
- Key personnel must include the Facility Director, Assistant

Director, the School Principal, the Food Service Manager, the Director of Psychology, Security Supervisor, and the Casework Supervisor.

E. Any proposed changes of staff identified as key personnel must be submitted for approval to the BOP prior to employment. Copies of supporting documents, including at a minimum, the application, the applicant's qualifications and reference checks, along with any other relevant documentation, must accompany the request for approval. Key personnel are to demonstrate experience in working with a diverse juvenile offender population, to include Native Americans.

- Employees must possess a Social Security Card approved by the United States Social Security Administration and be a United States Citizen or lawful permanent resident.

F. STANDARDS OF CONDUCT. The contractor must develop written policy, procedures and practices, subsequently referred to as the Standards of Conduct, on employee conduct, ethics and responsibility. The contractor must notify employees of the Standards of Conduct and document this notification in their personnel files.

The contractor must require all employees to sign an acknowledgment they have received and understand the Standards of Conduct and must cooperate fully by providing all pertinent information, which the contractor may have, to any investigative authority. Full cooperation means and requires truthfully responding to all questions and providing a signed affidavit, if requested.

The contractor must also document this acknowledgment in each employee's personnel file.

Investigative authorities include, but are not limited to, investigations conducted by the Federal Bureau of Investigation, Office of the Inspector General, Office of Professional Responsibility, Bureau Office of Internal Affairs, Office of Personnel Management, Bureau Special Investigative Agent, Bureau Special Investigative Supervisor, Equal Employment Opportunity Investigator, Department of Labor, U.S. General Accounting Office, U.S. Marshals Service or any other agent or agency the BOP authorizes or directs to conduct an investigation.

At a minimum, the contractor must include in the "Standards of

Conduct" the following:

- Employees must conduct themselves professionally and in a manner which creates and maintains respect for the contractor, the Bureau, the Department of Justice, and the U.S. Government.
- Employees must avoid any action which might result in, or create the appearance of, adversely affecting the confidence of the public in the integrity of the U.S. Government.
- Employees must uphold the ethical rules governing their professions, including complying with applicable licensing authority rules, unless they conflict with federal law.
- Employees must not use or possess illegal drugs or narcotics. They must not abuse any drugs or narcotics. Use of alcoholic beverages or being under the influence of alcohol while on duty, present in the facility, or immediately before reporting for duty is prohibited. An employee while on duty or in the facility is considered to be under the influence of alcohol if their blood alcohol content level is 0.02 percent or greater.
- Employees must not allow themselves to show partiality toward, or become emotionally, physically, sexually, or financially involved with juvenile offenders, former offenders, or the families of offenders or former offenders. Chaplains, psychologists, and psychiatrists may continue a previously established therapeutic relationship with a former offender in accordance with their respective codes of professional conduct and responsibility.
- Employees must not engage in, or allow another person to engage in, sexual behavior with a juvenile offender. Regardless of whether force is used or threatened, there can be no consensual sex between employees and offenders.
- Employees must not offer or give any article, favor, or service, which is not authorized in the performance of the employee's duties, to an offender or former offender, or to any family member of an offender or former offender, or to any person known to be associated with an offender or former offender. Employees must not accept any gift, personal service, or favor from an offender or former offender or from anyone known to be associated with or related to an offender or former offender. This prohibition includes becoming involved with families or associates of any offender.
- Employees must not show favoritism or give preferential

treatment to one juvenile offender, or a group of offenders, over another.

- Employees must not use profane, obscene, or otherwise abusive language when communicating with juvenile offenders, fellow employees, or others. Employees must conduct themselves in a manner which is not demeaning to offenders or fellow employees.
- Employees must remain fully alert and attentive during duty hours.
- Employees must not have any outside contact with an offender, ex-offender, offender's family or close associates, for a period of one year from the last day of the offender's sentence or supervision, whichever is later, except those activities which are an approved, integral part of the facility program and a part of the employee's job description.
- Employees must not engage in any conduct criminal in nature or which would bring discredit upon the contractor, the Bureau, Department of Justice, or U.S. Government. Employees' conduct must be above reproach. It is expected that employees must obey, not only the letter of the law, but also the spirit of the law, while engaged in personal or official activities. Should an employee be charged with, arrested for, or convicted of any felony or misdemeanor, that employee must immediately inform and provide a written report to the facility director. The facility director must immediately report the incident to the BOP. Traffic violations resulting in fines less than \$150 must be exempt from this reporting requirement.
- Employees must not use brutality, physical violence, or intimidation toward juvenile offenders.
- Employees must not possess lethal weapons or weapons which may inflict personal injury in the facility or while on duty.

The contractor must not conduct an investigation of any misconduct allegation without the Bureau's prior approval. This includes questioning the subject of a misconduct allegation. The contractor must advise all employees they are subject to Government investigation if an allegation is made concerning any interest of the Government.

G. Any violation or attempted violation of the restrictions referred to above must be reported to the BOP by telephone immediately and in writing within 24 hours. Such reporting is

to include proposed action to be taken by the contractor. Upon consultation with his/her supervisor, the BOP is to determine if the employee may continue to work with federal juveniles. Any failure to report a violation or take appropriate disciplinary action against contractor employees may subject the contractor to appropriate action, up to and including termination of the contract.

H. The contractor must vouch potential employees through reference and employment checks. The contractor must notify proposed employees a National Crime Information Center/National Law Enforcement Telecommunication System (NCIC/NLETS), fingerprint criminal records and other appropriate background checks will be processed by the Bureau to verify employment applications. Prospective employees may not begin working with federal juveniles prior to the initial and annual NCIC/NLETS clearance from the BOP. The granting of full approval of an employee will not occur until the government receives a response from the fingerprint or other background checks. The contractor must not employ any person under the supervision or jurisdiction of any parole, probation or correctional authority. Persons with previous criminal convictions, but who are not under supervision, may be considered for employment, however, the Bureau reserves the right of refusal in such cases. The contractor must follow all hiring steps outlined by PREA standards.

I. It is the responsibility of the contractor to provide a safe environment for all employees and juveniles in custody. The contractor must comply with all provisions of the Convict Labor Act, and Title VII of the Civil Rights Act of 1964, as amended.

CHAPTER 4: STAFFING PATTERNS

The Bureau recognizes there are differences between adult and juvenile staffing patterns. The contractor is to provide written policies, procedures and plans which clearly define system(s) utilized to ensure all federal juvenile offenders in custody are supervised, 24 hours a day, seven days a week, twelve months a year. The staffing plan must address the need for relief posts for each shift. The staffing plan must provide one direct supervision staff per eight juveniles during waking hours and one direct supervision staff per 16 juveniles during sleeping hours pursuant to DOJ standards. The Bureau considers the staffing ratios to be mission critical and the contractor shall not exceed the stated ratios for any reason. The contractor's Operations Manual must include references to:

- Direct supervision staff to juvenile offender ratio for each shift
- Key personnel responsible for maintaining adequate staffing for each shift
- Case manager to juvenile offender ratio
- Organizational chart outlining all department heads and their areas of responsibility

A. The contractor must ensure administrative, clerical, maintenance or other paid staff, whose primary function is not to provide direct supervision to juvenile offenders, are not included in the overall staffing pattern.

B. The contractor must seek the approval of the BOP for any proposed changes to a previously approved staffing pattern.

C. The contractor shall staff at least two positions (one male and one female if co-ed facility), 7-day post, 24 hours a day. These 7-day posts cannot be covered by any other position to include key personnel (i.e., director, case manager, etc.). The intent is that this post will devote 100 percent of its time to supervising juvenile offenders. Additionally, a management level staff member shall be on duty when most residents are awake, generally defined as 8 am to 10 pm.

D. The contractor shall retain, a weekly work schedule by position clearly defining the duty hours of each position. This schedule shall indicate which positions are full-time or part-time. In addition, the work schedule will identify if the positions are devoted to federal supervision and/or program

activities. Any revisions to this schedule must be approved by the BOP. Copies of schedules and revisions must be retained for the life of this contract.

E. The contractor shall ensure all positions identified in the technical proposal are filled during the life of the contract. Failure to fill these positions may result in adverse contract action, to include a request for monetary sanctions. The Bureau expects all vacancies to be filled within 30 days. If a replacement is not ready within 30 days, the contract facility must develop a plan, approved by the BOP, to provide temporary coverage of this position for 60 days or less.

F. The contractor is responsible for the supervision of federal juveniles and the orderly running of the facility. The contractor shall notify the BOP of any unforeseen circumstance which may affect the safety, security, or orderly running of the facility. The facility will notify the BOP of any situation which may create a media interest.

CHAPTER 5: TRAINING

The contractor must provide written policies and procedures which clearly describe the facility's staff development and training program for all paid employees, including administrators, administrative staff, support staff and direct supervision staff. Refer to American Correctional Association Standards as a guide.

A. The contractor's staff development and training program must be designed to satisfactorily meet the contractor's mission and the Bureau's goal of ensuring each federal juvenile offender in custody receives a minimum of 50 hours of quality programming per week from qualified and properly trained staff, in an environment conducive to rehabilitation. The contractor's staff development and training program must be culturally and gender sensitive, and should focus on issues unique to the juvenile offender population. All programs shall be evidence based or reviewed by a third party, which can independently replicate the program with similar outcomes. The Bureau requires all programs to be compatible with the Risk/Need/Responsivity and Good Lives models.

B. The contractor must maintain a training manual at the facility documenting the credentials and qualifications of all trainers. The contractor must ensure each new employee receives 40 documented hours of pre-service training. A copy of the training curriculum must be kept on file and made available for review by the BOP.

C. The contractor must also submit a plan for providing annual training to all paid staff and volunteers who provide services more than once each year. The training shall enhance their ability to perform their responsibilities. The contractor is to provide clerical and support staff with 16 hours of annual training each year. Direct supervision staff must receive, at least 24 hours of annual training. The contractor is responsible for developing the training agenda according to need. The Bureau requires the following training topics be included during annual training:

- CPR/First Aid;
- Emergency Fire Plan and Evacuation;
- Suicide Prevention and Intervention;
- Use of Force Policies;

- Sexual Abuse, Prevention and PREA;
- Mental Health Awareness;
- Code of Conduct/Integrity;
- Cognitive/Cultural/Communication/Relationship Building Skills/Conflict Resolution;
- Emergency Plans;
- Accountability and Security;
- Life Safety; and
- Universal Precautions.

D. The contractor must provide written policies and procedures and a plan outlining the potential use of physical, mechanical, chemical, and other mental health interventions to address disruptive behavior within the facility. These policies and procedures must have the approval of the BOP and be consistent with good judgment and sound correctional practices. The contractor must reference American Correctional Association Standards.

E. It is the responsibility of the contractor to ensure direct supervision staff are properly trained in crisis assessment skills, crisis intervention, and communication skills. Such training, including the use of physical, mechanical, chemical and other interpersonal communication skills, is to be provided prior to an employee's contact with a juvenile offender. The contractor's policies and procedures are to identify the types of interventions allowed, person(s) authorized to use such interventions, and circumstances which may prompt such use.

F. The contractor must have a system in place for documenting and immediately informing the BOP of all incidents involving physical, mechanical, chemical, and suicide interventions.

G. The contractor will be required to pay for training and related travel when the contractor's performance necessitates the Bureau to provide training to correct findings. This need will be determined by the BOP.

H. The Residential Reentry staff (BOP), sector office staff (RRSA and ARRSA), and Central Office staff of the Bureau may provide instructions and guidance during the life of the contract to ensure the specifications of the contract and expectations of the Bureau are met.

I. The contractor must submit a comprehensive Juvenile Suicide

Prevention and Intervention Policy, prior to the preoccupancy inspection. The policy and procedures must have been reviewed and approved by a licensed mental health professional. A copy of the policy and plan must be submitted to the BOP. The BOP must receive written notification of any policy changes. Staff must be trained on this topic prior to work with federal juvenile offenders and during annual refresher training. Copies of this training curriculum must be made available to the Bureau upon request and is subject to Bureau revision as necessary.

J. The contractor must have on file a copy of the Bureau Program Statement 5216.05, Juvenile Justice and Delinquency Prevention Act (1974) and a copy of The Civil Rights of Institutionalized Person's Act (CRIPA). It is the responsibility of the contractor to make these materials available to all key personnel and other staff, as deemed necessary.

CHAPTER 6: FACILITY

The Bureau's requirements for juvenile housing under this SOW are consistent with American Correctional Association Standards. The contractor must reference this section and submit a plan, in the technical proposal, for meeting these requirements. In addition to meeting applicable federal, state and local building codes, the plan must address the following:

- Appropriate square footage for living units, sleeping areas, and day rooms;
- Air conditioning;
- Temperature control;
- Lighting;
- Acoustics;
- Furnishings;
- Wash Basins;
- Showers;
- Secure storage space;
- Housing for the handicapped and special needs; and
- Special Management Housing.

A. Requirements for utilization of Special Management Housing will be addressed later in this SOW. In cases where the facility houses female and male juvenile offenders, the contractor must submit a plan addressing coeducational activities, and separate sleeping areas.

B. The facility must dedicate indoor and outdoor space for recreation, and structured activities to be utilized by all federal juvenile offenders, male and female. The contractor will submit examples of these activities in their technical proposal.

C. The facility must be conducive to juvenile offender needs, yet, still maintain safety and security of all juveniles and staff.

D. Juvenile offenders identified by the BOP as sex offenders must have a thorough and comprehensive psycho-social intake and assessment upon admission. The findings of the intake and assessment must be used to assign juveniles to housing, programming, and community based activities consistent with PREA guidelines and sound correctional management practices.

E. The contractor's technical proposal shall include a legible and accurate copy of the site plan and floor plans for the proposed facility identifying sleeping rooms, dining room, visiting room, conference room, recreation rooms, offender bathrooms, staff offices, laundry room, kitchen, and programming and education/instructional areas. The Bureau requires the facility to meet all ADA requirements for handicapped access. The plan must identify the total gross square footage of each room minus the square footage of furniture items (beds, dressers, sink, and toilets).

F. The floor plans must identify the unencumbered space area per occupant in the sleeping rooms and dining room.

G. The facility must provide juvenile offenders a cell/room with a window which provides natural light as outlined in ACA standards. Dayrooms must meet ACA standards. All areas must address noise, lighting, and views to the outside, consistent with ACA standards

CHAPTER 7: LIFE SAFETY

The contractor must ensure requirements in the area of life safety are met at all times. In conjunction with the Occupational Safety and Health Act of 1970, all codes and regulations associated with 29 CFR 1910 and 1926, and American Correctional Association Standards, the contractor must submit a plan (in the technical proposal) ensuring the facility complies with all local, state, and national health, safety, environmental, and building codes. In the event local, state, and national codes conflict, the most stringent will apply.

- The contractor must ensure the facility is inspected in accordance with local and state fire building codes by a representative of the local or state authority having jurisdiction.
- The contractor must establish a comprehensive Environmental/Pollution Prevention Program designed to use source reduction techniques and sound recycling practices in accordance with local ordinances. If there are no local ordinances in place, the contractor must develop an Environmental Awareness Program available to all juveniles.
- A diagramed emergency evacuation route shall be posted appropriately and identify the "You Are Here" location and be compatible with the floor plan. This diagram shall also show the exterior areas of the facility used as assembly points or other areas of safe refuge during an emergency evacuation or drill.
- The contractor shall conduct an evacuation drill each month; one drill must occur between the hours of 6 am and 6 pm; one drill must occur between the hours of 6 pm and 12 am (midnight); and one drill must occur between the hours of 12 am (midnight) and 6 am, during each quarter. The drill must document how the alarms were activated, date and time of the drill, amount of time taken to evacuate the building, evacuation path used, number of staff and juvenile offenders participating, and comments.
- The contractor shall conduct a minimum of two drills annually between the hours of 2 a.m. - 6 a.m.

Adverse weather conditions: The facility must develop an adverse weather plan and identify areas with signs, where staff and offenders will shelter-in-place. Adverse weather drills shall occur once each quarter, on an annual basis.

CHAPTER 8: ELECTRICAL SAFETY

The National Electric Code and General Industry Standards (OSHA 1910.304) will be the measure used to assess compliance with electrical standards. It is important for the contractor to acknowledge the following:

A. Ground Fault Circuit Interrupters (GFCIs) are to be required on all 110 volt, single phase outlets in the laundry facility, if the washing machines are exposed to the weather or wet areas. In addition, if laundry areas have a water source (i.e., utility sink) within six feet of receptacles, these receptacles are required to be protected.

- GFCI wiring must be 14 gauge with ground. Standard wiring is usually 12 gauge with ground.

B. Electrical panel box covers must contain an accurate, up-to-date directory. The means of disconnecting electrical equipment must be marked as to its use, unless readily apparent.

C. Extension cords must not be used in lieu of hard or permanent wiring. This includes "power strips."

D. Wiring/receptacles must be grounded - no obsolete 2-wire outlets may be used, unless approved by the Bureau.

E. Floor space heaters and hot water "stringers" are considered unsafe from the standpoint of fire safety and must not be permitted.

F. Guard grids on oscillating or floor fans cannot exceed .625 centimeter (1/4") for safety reasons.

G. The following electrical safety standards apply:

1. Damaged or frayed wiring cannot be taped or spliced.
2. Empty light fixture or fuse sockets, wiring, etc., may not be exposed or unprotected. Missing knock-outs, circuit breakers, or other openings in electrical equipment must be effectively enclosed to prevent exposure to live or energized ports.
3. The use of multi-outlet electrical adapter plugs, splitters, and adapters is prohibited.

4. Damaged plate covers, switches, outlets, etc., must be replaced.

5. The use of electrical tape to repair cut or damaged cords or cables is prohibited. Cords and cables must be effectively repaired by the proper means (i.e., use of heat shrink tubing, reinstallation of cords or cables to equipment, etc.).

H. Prior to the preoccupancy inspection, the successful contractor will provide documents of an independent inspection of the electrical system by a certified contractor.

CHAPTER 9: TOXIC, CAUSTIC, AND FLAMMABLE MATERIALS

The contractor must establish a written program for the storage, issuance, handling, and accountability of flammable liquids, hazardous chemicals, toxic, and caustic materials used within the facility. Refer to American Correctional Association Standards for Juvenile Training Schools and the Environmental Protection Agency (EPA) and General Industry Standards (OSHA 29 CFR 1910) for guidance and direction.

All personnel must be trained in the proper handling and use of all toxic, caustic, and flammable materials within two weeks of their initial employment, or whenever a new hazard is introduced into their work area. Toxic, caustic, and flammable materials are defined as those having "signal words" such as POISON, DANGER, and/or WARNING on the label. Such materials require special handling, control, and accountability. All training is to be documented for compliance. The contractor is to acknowledge:

A. Flammable materials, such as gasoline, kerosene, and paint thinner are to be stored outside the main structure or in approved Department of Transportation safety containers located within the facility. Flammable materials are classified as a Class I material having a flash point of -17.8 - 37.8 degrees Celsius (0-100 degrees Fahrenheit).

B. Toxic, caustic, and flammable materials may not be stored in sleeping rooms, furnace areas, kitchens, or in close proximity to stored foodstuff.

C. Materials are to be properly labeled, stored in the original container, and maintained in a secure area. Concentrated materials may be used by the general population once the product has been diluted. The container is to be labeled and marked "Diluted."

D. Inventory cards or an approved method of accountability must be maintained on all toxic, caustic, and flammable materials.

E. Propane gas and other pressurized cylinders, both full and empty, are to be strapped, chained or stored in the upright position.

F. Aerosol containers are considered pressurized cylinders.

They need to be controlled and accountability maintained.

G. The "Right-to-Know-Law" requires Safety Data Sheets (SDS) be maintained on all toxic, caustic, and flammable materials. These data sheets will list the characteristics and chemistry of the product, flash point, and first aid antidote in case of ingestion or exposure. Staff shall review quarterly the SDS to ensure it is current. The Facility Director or designee shall document this review and make it available to the BOP upon inspection.

H. Personal protective clothing is to be furnished and utilized in accordance with the SDS.

CHAPTER 10: PEST CONTROL

The EPA has set standards for pesticide handling and use. These include such areas as record keeping, storage and disposal procedures, filling and mixing methods, etc. All of the standards are designed to help make pesticide use safer for individuals and the environment.

State laws also govern pesticide use. Both federal and state laws and regulations apply to any person using pesticides within a state. In some cases, it may be feasible for the contractor to contract these services through a licensed exterminator. The best method of pest control is the establishment and maintenance of good housekeeping practices.

A. The contractor must provide for vermin and pest control, as well as their disposal.

B. Proper control and accountability of pesticides and rodenticide is to be maintained.

- Pesticides are to be stored in a cool, dry, and well-ventilated room which can be secured and locked. All pesticides are to be stored in their original containers bearing the proper label of the ingredients.
- All empty pesticide containers are to be triple rinsed prior to the disposal of the container. Disposable aerosol containers are not to have any "charge" remaining in them at the time of their disposal.

C. Screens on all open windows within food preparation and dining areas are to be in place and in good condition.

D. Trash and garbage removal is required. Containers and collecting areas are to be free of accumulated trash and debris.

CHAPTER 11: SANITATION AND HYGIENE

The Bureau's requirements for Sanitation and Hygiene are consistent with American Correctional Association Standards for Juvenile Training Schools. The contractor must reference this section and submit policies and procedures addressing the following:

1. Weekly facility sanitation inspections;
2. Yearly inspection by federal, state, and/or local sanitation and health officials;
3. A housekeeping plan for all areas of the facility outlining responsibilities for staff and juveniles;
4. Vermin and pest control plan;
5. Hair care service which is culturally-sensitive, while also considering the security requirements of the facility. Such service shall be provided in a separate area for hygiene reasons;
6. Plan for the lawful disposal of liquid and solid waste;
7. Plan providing for the issuance and accountability of suitable, clean bedding and towels for each federal juvenile. This includes protective clothing for juveniles participating in work assignments; and
8. The contractor shall require juveniles to maintain a high standard of sanitation and environmental health throughout the facility. Juveniles are not permitted to perform work for the contractor, except as part of the sanitation and housekeeping plan. The contractor may require offenders to maintain high sanitation in their living areas. This includes sweeping and cleaning their living areas, recreation or day rooms, bathrooms, passages, and hallway areas. The contractor shall not use the juveniles in lieu of paid workers.

The contractor is to provide documentation the facility's potable water source and supply, whether owned and operated by the public water department or the facility, is certified by an independent, outside source to be in compliance with jurisdictional laws and regulations.

CHAPTER 12: SECURITY AND CONTROL

The contractor's policies and procedures related to facility security and control are to be written and included as part of the facility's Operations Manual, which is subject to review by the BOP. Refer to American Correctional Association Standards for Juvenile Training Schools as a guide.

A. The contractor is to ensure the facility's perimeter is controlled by an appropriate means to ensure juvenile offenders remain within the perimeter and to prevent access by the general public, without the appropriate authorization. The contractor is to maintain man barrier wire on the perimeter fence(s). Perimeter security may be enhanced by electronic surveillance, but should not be considered a substitute for direct supervision of juveniles. The contractor may request a variance for perimeter security; however, the Bureau reserves the right to determine what constitutes an appropriate perimeter security system. The Bureau prohibits the use of electric shock fences and use of lethal force to prevent escape from a juvenile facility.

B. The contractor must provide a central control, staffed 24 hours a day, seven days a week, twelve months a year. The control room will maintain all communication, key and lock control, and security aspects of the facility. The area will be the focal point of the facility to maintain order and security. Juvenile offenders will not be permitted in this area. Entrance and exit to the facility requires a sally-port arrangement.

C. The contractor must provide written policies and procedures for regulating and accounting for juvenile offender movement. A current and accurate headcount must be available at all times. At least one standing count must be performed each day.

D. The contractor must have written policies and procedures to ensure the facility has a system in place for videotaping all physical restraints of juveniles. All incidents of physical and mechanical restraint will be documented on a significant incident report and submitted to the BOP for review. It is the responsibility of facility staff to notify the BOP immediately by telephone or email of such incidents. A written report is to be submitted to the BOP within 24 hours after the incident. In addition to reviewing the significant incident report, the BOP may also request a copy of any/all videotape or surveillance images for review. Videotapes of physical restraints must be

kept on file for one year. The Bureau reserves the right to request an after-action report be completed by staff authorized by the Bureau, of any significant incident.

E. Regardless of the terminology used to describe behavioral interventions (i.e., use of force, physical and mechanical restraint, physical intervention, chemical agents, mechanical intervention, four-point restraint, suicide intervention), the contractor must submit written policies and procedures involving any such incident and must clearly outline the criteria for using such interventions. Under no circumstances is an intervention justifiable as punishment. The written policies and procedures must include guidelines for ensuring a juvenile is examined by a physician, physician assistant, nurse, or other designated medical personnel within two hours following such incidents. Written policies and procedures must also be developed to ensure a qualified mental health provider interviews a juvenile offender within 2 hours of a significant incident. The contractor's written policies and procedures must be consistent with ACA guidelines. A senior management official, not involved in the incident, must review each significant incident within 24 hours, and then each day following, until the juvenile is returned to general population programming or is removed from the facility. In addition, the Bureau reserves the right to refer any policy to Bureau medical and mental health professionals for review at any time.

F. Written policies and procedures are to be included in the Operation's Manual as to the storage and administration of chemical agents. No chemical agents are to be stored in or near a juvenile offender housing area, or any other areas where juveniles may be present. Chemical agents are to be secured in a depository not accessible to juveniles. Chemical agents are to be inventoried on a monthly basis. The contractor is to review policies and procedures on a regular basis and advise the BOP of any policy changes. Any staff member with access to chemical agents must be approved by the Facility Director to retain and administer chemical agents, following the completion of industry/corrections based approved training in the use and administration of chemical agents. Similar policies must be in place for other less than lethal agents and self-protection equipment.

G. The contractor is prohibited from using firearms, CS gas, oil-based chemical agents, and peer-assisted restraints.

H. The contractor must provide for weekly searches of the facility and juvenile offenders to control contraband. A system will be established to ensure contraband is properly disposed of, or properly marked and stored as evidence. Documentation of these searches is to be maintained for one year.

I. The contractor must provide written policies and procedures for manual or instrument inspection of body cavities, or pat searches. Body cavity searches must only be conducted upon authorization of the CEO after consultation with the Bureau, and are to be conducted in private by trained health care personnel only. All searches must comply with PREA guidelines.

J. The contractor will immediately notify the BOP of any cavity searches. The contractor must ensure policies and procedures are reviewed for appropriateness by a DOJ PREA Auditor prior to its implementation on federal juvenile offenders, both male and female.

K. The contractor must have a documented quality control plan in place, which ensures the facility's security systems are operable at all times. Facility inspections must be documented and retained for review by the Bureau upon request for the duration of the contract and one year following the termination of the contract.

L. The contractor must provide written policies and procedures outlining a plan of action in the event of an escape, major disturbance, threats, adverse weather, or any incidents requiring mass evacuation. These plans are to be made available to all staff and reviewed and updated at least annually. Documentation of the review process is to be maintained for Bureau review for the duration of the contract and one year following the termination of the contract.

CHAPTER 13: SUPERVISION OF JUVENILE OFFENDERS

The contractor's policies and procedures must specify a strategy for the direct supervision of juveniles. The contractor must clearly articulate the importance of maintaining a lower ratio of staff to juveniles.

A. The responsibilities of Direct Supervision staff involve more observation, interaction and counseling with juveniles. No offender or group of juvenile offenders is to be given control or authority over other juvenile offenders.

B. The contractor must provide written policy ensuring that the Facility Director or Designated Facility Administrator documents weekly visits to the facility's living, security, educational, infirmary (if applicable), and structured activity areas.

C. The contractor must be responsible in ensuring all staff are kept informed of written policies and procedures pertaining to the safety of the public, juveniles, staff, mentors and volunteers.

The Bureau prohibits the use of prolonged segregation of juvenile offenders. Segregation can only be used to foster the development of juvenile offender self-control (i.e., not an imminent threat to engage in harm to self or others). Segregation is not to be used as a form of discipline. The contractor must develop policies and procedures to provide direct supervision to juvenile offenders following disruptive acts/behaviors, which foster continued staff and peer engagement in programming activities, provided by the facility.

CHAPTER 14: JUVENILE OFFENDER DISCIPLINE

The contractor must refer to American Correctional Association Standards and the Program Statements on Inmate Discipline Program and Special Housing Units as a guide for providing written policies and procedures related to juvenile discipline. The contractor may also make reference to the Juvenile Justice Delinquency and Prevention Act (1974), the Civil Rights of Institutionalized Persons Act (CRIPA), Bureau Prohibited Acts, and the Federal Sentencing Reform Act of the Comprehensive Crime Act for additional guidance. The contractor's written policies and procedures regarding juvenile discipline must clearly define the differences between an offender's privileges and basic constitutional rights guaranteed by the United States Constitution. The contractor must balance public protection, victim awareness and juvenile accountability. Written policies and procedures must address Rules and Discipline, Criminal Violations, Disciplinary Reports, Disciplinary Hearings, Hearing Decisions and Appeals Process.

A. Although a contractor may impose a system of graduated sanctions for rule violations by federal juveniles, written policies and procedures must ensure corporal punishment, as a means for juvenile discipline, is strictly prohibited. A graduated sanctions disciplinary system requires the discipline be proportional to the violation committed. Regardless of the violation committed by a juvenile offender, repetitive make-work, neglect, segregation without cause, food deprivation and improper physical and mechanical restraint of a juvenile is prohibited. The improper use of any chemical agents on juveniles is prohibited. The contractor's Juvenile Discipline Policy must be included in the facility's Operations Manual for review by the BOP. The BOP must receive written notification of all policy changes.

B. The contractor must provide a copy of the contractor's Rules of Conduct to each new juvenile offender upon arrival at the facility and document this action. A translated copy of the Rules of Conduct must be provided to non-English speaking juveniles, as well as, those with other cognitive limitations.

C. The contractor must submit written policies and procedures ensuring the following are included in the Rules of Conduct:

- Guidelines for rewarding positive behavior;
- Guidelines for addressing and resolving minor, major and

serious juvenile misbehavior;

- Guidelines for informing the juvenile of sanctions and providing an opportunity to respond to allegations;
- Guidelines for the use of room restriction, secure unit and special management housing; and
- Guidelines for allowing all juveniles to write statements involving special incidents.

D. The contractor must immediately notify the BOP by telephone or email in the event a federal juvenile is referred to a local law enforcement agency for prosecution, resulting from an allegation of an act covered by criminal law.

E. The contractor must provide written policies and procedures regarding disciplinary reports. If the contractor utilizes a graduated sanctions approach, a distinction must be made between major and minor rule violations, privileges and constitutional rights. It is the responsibility of the contractor to ensure due process requirements are an integral part of the sanctions process.

F. The contractor must provide written policies and procedures regarding disciplinary hearings. At a minimum, the policy must provide that a juvenile charged with a major rule violation is scheduled for a disciplinary hearing as soon as practicable, but no later than seven days after the alleged violation, excluding weekends and holidays. The BOP, and with supervision cases the USPO, must be informed of all scheduled hearings, decisions, dispositions and appeals. It is the responsibility of the contractor to discuss the recommended sanctions with the BOP and/or USPO before conducting a disciplinary hearing.

G. The contractor must provide written policies and procedures regarding the disciplinary hearing process. The disciplinary hearing must be conducted by an impartial person or panel of persons. The contractor must ensure a record of the entire hearing process is made and maintained for at least six months. The following guidelines must be included in the policy:

- A disciplinary hearing may be held within 24 hours of the alleged incident with the written consent of the juvenile.
- The juvenile must have the opportunity to be present at his/her hearing, unless he/she waives that right in writing or his/her behavior does not allow for his/her presence. In all cases, the reason for the absence from the hearing

must be documented.

- The juvenile must have the opportunity to make a statement and present documentary evidence at the hearing. He/she may request witnesses on his/her behalf. Denied requests must be stated in writing.
- The juvenile must have the opportunity to request the services of any staff member to represent him at the disciplinary hearing and to question relevant witnesses.

H. The contractor must submit written policies and procedures documenting the results of all disciplinary hearings involving federal juvenile offenders. The recorded proceedings, along with the supporting documentation, must include the decision, the disposition, and summary of the findings.

I. The contractor must submit written policies and procedures granting juveniles the right to appeal decisions of the disciplinary committee to the Facility Administrator or designee. Juveniles have up to 20 days after the receipt of the hearing decision to submit an appeal. The appeal must be decided within 30 days of its receipt, and the juvenile is promptly notified of the results.

J. Regardless of the terminology used to describe the separation of juveniles from general population and their placement into special housing (i.e., security, special housing unit, disciplinary segregation, segregation, and crisis prevention unit), the use of room confinement at a juvenile facility for discipline, punishment, retaliation, or any reason other than as a temporary response to a juvenile offender's behavior, posing a serious and immediate risk of physical harm to any individual, is prohibited.

REQUIREMENT TO USE LEAST RESTRICTIVE TECHNIQUES:

- IN GENERAL: Before a staff member of a juvenile facility places a covered juvenile in room confinement, the staff member shall attempt to use less restrictive techniques, including:
 1. Talking with the covered juvenile in an attempt to de-escalate the situation; and
 2. Permitting a qualified mental health professional to talk to the covered juvenile.
- EXPLANATION: If a staff member of a juvenile facility

decides to place a covered juvenile in room confinement **after** attempting to use less restrictive techniques as required, the staff member shall first;

1. Explain to the covered juvenile the reason for room confinement; and
 2. Inform the covered juvenile releasing from room confinement will occur;
 - a) Immediately when the covered juvenile regains self-control; or
 - b) Not later than the period described in the following section on Maximum Period of Confinement.
- **MAXIMUM PERIOD OF CONFINEMENT:** If a covered juvenile is placed in room confinement because the covered juvenile poses a serious and immediate risk of physical harm to him/herself, or to others, the covered juvenile shall be released;
 1. Immediately when the covered juvenile has sufficiently gained self-control, so as to no longer engage in behavior, threatening serious and immediate risk of physical harm, to him/herself, or to others; or
 2. If a covered juvenile does not sufficiently gain control as described in (1), no later than:
 - a) 3 hours after being placed in room confinement, in the case of a covered juvenile who poses a serious and immediate risk of physical harm to others; or
 - b) 30 minutes after being placed in room confinement, in the case of a covered juvenile who poses a serious and immediate risk of physical harm only to himself or herself.
 - **RISK OF HARM AFTER PERIOD OF CONFINEMENT:** If after the applicable maximum period of confinement under the above paragraphs has expired, a covered juvenile continues to pose a serious and immediate risk of physical harm:
 1. In consultation with the BOP, the covered juvenile shall be moved to another facility or location where services can be provided to the covered juvenile, without relying on room confinement;
 2. If a qualified mental health professional believes the level of crisis services needed is not available, a staff member of the juvenile facility shall initiate a referral to a location which can meet the needs of the covered juvenile.

- SPIRIT AND PURPOSE: The use of consecutive periods of room confinement to evade the spirit and purpose of this section shall be prohibited.

K. Policies related to the use of special management housing must include provisions for the following:

- Interdisciplinary Treatment Team: The team develops a Special Behavior Management Program Plan which encourages self-discipline through a behavior modification system of rewarding positive behavior.
- Fifteen minute review: Juveniles in special management housing must be checked by staff at least every 15 minutes and must be visited at least once each day by administrative, clinical, social work, medical personnel, mental health professionals and spiritual leaders.
- Log: A log is maintained to document who authorized the special management housing confinement, persons visiting the juvenile, when these individuals visited the juvenile (to include time in and time out), the person authorizing release from secure confinement, and time of release.
- Services: Juveniles in special management housing must have a room, food, clothing, exercise, education, medical, psychological and all other services comparable to juveniles in general population. Where such services are denied, the facility must provide written justification to the BOP. Juveniles shall have access to education, mental health, social, and spiritual programming while residing in special management housing. These programs shall occur outside the cell in a setting where these meetings can occur without undue influence of custody staff.

CHAPTER 15: ADMINISTRATIVE REMEDY PROCEDURES

The contractor must submit written policies and procedures providing for grievance resolution or administrative remedy in response to a juvenile's concerns. The contractor must reference the Bureau's Program Statement on the Administrative Remedy Program, augmented by American Correctional Association Standards for Juvenile Training Schools, as a guide for ensuring juveniles are aware of their right to formally present their issues of concern to the facility director and the appropriate Bureau staff for formal or informal resolution within the time frames outlined in Bureau policy, PREA, and ACA standards.

CHAPTER 16: REFERRAL AND INTAKE PROCESSING

The contractor must have written policies and procedures governing referral and intake of juveniles. Regardless of the type of placement under this contract, all referrals must be processed through the BOP office responsible for placement under this contract, to designate the juvenile to secure custody or work release. The BOP will not accept fiscal responsibility for any placement under this contract which was not coordinated by the BOP prior to the placement of the individual. For guidance on the proper intake and orientation process, the contractor must reference: American Correctional Association Standards; Title 18, USC 5037; and the Bureau Program Statements on Juvenile Delinquents, Juvenile Justice and Delinquency Prevention Act; Receiving and Discharge Manual; Admission and Orientation Program; Suicide Prevention Program; FBI Forms, Submission to the FBI; and Central Inmate Monitoring Manual. The contractor must adhere to applicable local, state and federal laws in maintaining the confidentiality of any information gathered, to include:

- Appropriate notifications;
- Transfers;
- Execution of the Judgment and Commitment (J&C) Order;
- Juvenile case files;
- Juvenile fingerprinting and photographing; and
- Initial Intake Form.

A. The contractor shall e-mail, fax, or utilize Bureau provided computer based programs to send the acceptance letter to the BOP of the reporting date. The acceptance notification must include the inmate's complete name, register number, acceptance date, and specify whether the inmate is a BOP or USPO case. If the reporting date differs from the date identified in the referral packet, the contractor must obtain concurrence from the BOP before notifying the referring agent of the acceptance.

B. The contractor shall develop an intake process. Immediately upon a juvenile's arrival, staff shall interview the offender to determine if there are reasons for housing the juvenile away from the facility's main population. Staff shall conduct the interview in private, away from other juveniles. A PREA intake screening must be completed to indicate housing and programming assignments

C. When a juvenile reports to the facility for admission, the contractor shall immediately notify the BOP using email, fax, or a Bureau provided computer program. This notification shall include evening hours, weekends, or holidays.

D. The contractor shall complete an intake form for each juvenile and place it in the front of the offender's file.

E. The contractor shall photograph each juvenile admitted and provide a copy to the BOP. New photographs shall be taken for any changes in physical appearance.

F. The Contractor must execute the Judgment and Commitment (J&C) Order upon arrival of a juvenile committed directly from court to serve a sentence. Staff must sign and date the original J&C and return it, in a timely manner, to the U.S. Marshal (USM) of the sentencing district, with a copy to the BOP indicating the date the original was mailed to the USM. The Contractor must retain a copy in the juvenile's file.

G. Fingerprints and photographs of a juvenile who has not attained his/her 18th birthday, or is sentenced under the JJDPa, may not be used as a method of exchanging arrest information between law enforcement agencies. Contract facility staff must submit a juvenile's fingerprints to the Federal Bureau of Investigation (FBI) on a fingerprint card (FD-249), upon admission to the facility, with a notation in the additional information block indicating the subject has been adjudicated a juvenile delinquent under 18 U.S.C. 5037, or the subject has not attained his/her 18th birthday, but was sentenced as an adult. The FBI will furnish the FBI number and the arrest history, if one exists, and will return the fingerprint card. This requirement is referenced in the Bureau Program Statement 5216.05, Juvenile Delinquents, Juvenile Justice and Delinquency Prevention Act, which indicates the following:

1. The Contractor will use an FBI fingerprint card and take three sets of fingerprints on Direct Court Commitments and two sets on Supervision Cases. Two sets of fingerprints on Direct Court Commitments and one set on Supervision Cases will be forwarded to the BOP. The remaining set of fingerprints will be kept in the juvenile's file for identification purposes only.

2. If the Contractor does not have staff trained in fingerprinting procedures, they may make arrangements with a local law enforcement agency to complete fingerprinting

procedures. Contractor staff will accompany juveniles when prints are taken. Contractor staff may contact the BOP to assist in arranging for fingerprints.

3. Facilities operated by state correctional or parole agencies should forward fingerprint cards to the Federal Bureau of Investigation in accordance with their own practices.

H. DNA Analysis Procedures

The DNA Analysis Backlog Elimination Act (DNA Act) requires the Federal Bureau of Prisons to obtain DNA samples from all inmates with qualifying offenses in order to comply with the DNA Analysis Backlog Elimination Act of 2000 (P.L. 106-546) and USA Patriot Act (P.L. 107-56). These laws require DNA samples to be obtained from inmates convicted of all federal codes. Samples must also be obtained from qualifying D.C. Code felony offenders.

Steps for DNA Sample Collection:

1. Identification of Inmates

The BOP office will provide each contractor with a letter requesting the collection of DNA samples on any inmate identified as requiring DNA testing.

2. Collecting DNA Samples

Once the BOP office identifies an inmate requiring DNA testing, they will forward to the contractor, a letter requesting the collection of the DNA sample (see attachment C), the buccal swab kit, and a DNA Fact sheet (see attachment D).

Upon receipt of the letter requesting collection of the DNA sample, the contractor will contact Bureau staff to obtain the inmate DNA number for inclusion on the Request for National DNA Database Entry cards. Upon receiving the assigned inmate DNA number, contract staff has 24 hours to obtain the DNA sample from the inmate.

NOTE: Strict accountability of DNA numbers must be maintained to ensure proper/assigned numbers are provided with the correct inmate DNA sample.

Once a DNA number is placed on a kit and the collection is completed, the kit will be sent directly to the FBI, by the contractor, within 24 hours of collection.

Collection Procedures for Juveniles in Contract Facilities

If a juvenile refuses to submit a DNA sample, the contractor will notify the BOP and the Sector Management Team (SMT) will assess the case. A juvenile cannot be housed in a Bureau-operated facility; therefore, the BOP, with the SMT's concurrence, will advise the contractor to employ "use of force" procedures as provided in its operating plan, in order to collect the DNA sample.

One consequence of a refusal by a juvenile is the DNA may be obtained via blood sample (collection of a blood sample is generally a more reliable and safer method of collection), as such, blood collection kits may also need to be sent to the contractor. Procedures used in this process will be documented and placed in the juvenile's file.

Training

Instructions for the use of the Buccal Swab Kit are included with each kit. Additional training to include pamphlets and an instructional video are available on the manufacture's website. Contact your local BOP office if further information is needed.

CHAPTER 17: SERVICES

The contractor must submit written policies and procedures regarding the delivery of services to federal juvenile offenders. The contractor must refer to American Correctional Association Standards for further guidance in addressing service delivery; the contractor must reference the following Bureau Program Statements and Technical Reference Manuals (TRM):

- Health Services Manual (HSM)
- Psychiatric Treatment and Medication
- Health Promotion and Disease Prevention for Inmates
- Infectious Disease Management
- Pharmacy Technical Reference Manual
- Suicide Prevention Program
- Psychology Services Manual

A. Food

1. The contractor must ensure juveniles are provided three nutritionally balanced meals per day, seven days per week, 12 months per year, at no cost to the juvenile. Food preparation is the responsibility of the contractor, not the juvenile to include those on work release.

2. The contractor must ensure appropriate food service management through its own food service program or through a subcontract with a food service provider. If the contractor sub-contracts meal service, a copy of their contractual agreement must be provided to the Bureau with the following information:

- Evidence the establishment is a full-service organization, capable of providing breakfast, lunch, and dinner meals;
- Evidence the establishment has a valid state or local license, certificate or permit, as applicable, to operate, prepare and/or serve food; and
- Evidence the establishment meets all state and/or local sanitation and health codes.

3. The contractor must submit written policies and procedures ensuring a registered dietician or nutritionist reviews on an annual basis and approves the nutritional value of the menu.

4. All meals must meet the Recommended Dietary Allowances and the Dietary Guidelines as set by the current version of the American Dietetic Association for Juveniles. A copy of a sample menu, including portion size, must be submitted with the contractor's initial proposal. The approved menu must be appropriately posted.

- Provisions must be made to accommodate juveniles who are not available at regularly scheduled meal times.
- Arrangements for special diets required by religious preference must be provided on an as-needed basis.

If the contractor prepares its own food for service, the facility must employ a full-time food service manager experienced in food service management. This employee shall have the resources, authority, and responsibility to provide the facility complete food service while ensuring compliance with all federal, state and local licensing, attire, fire safety, sanitation, inspections and food handling requirements.

B. Medical, Mental and Dental

1. The contractor must provide access to the full range of required health, medical, dental, mental health, pharmaceutical, and record keeping services for all federally sentenced juvenile offenders. Reference is made to the current edition of National Commission of Correctional Health Care's Standards for Health Services in Prisons, Part 4, Section C, American Correctional Association Standards for Juvenile Training Schools, and the Bureau's Health Services Manual as a guide in developing policies and procedures. The contractor shall also reference Chapter 2 of this SOW for discussion of the Bureau's financial responsibility for Direct Commitments. The contractor must obtain instructions from the USPO for emergency medical care and provisions of other medical and dental services for those offenders not in the custody of the Bureau. The contractor is to submit policies and procedures including the following requirements:

Provisions which all juveniles receive an initial medical and mental health screening within 24 hours of arrival at the facility;

Provisions which all juveniles receive a complete physical and mental health examination within 14 days of arrival at the

facility;

Provisions which all direct care staff at the facility are trained in emergency first aid procedures, including cardiopulmonary resuscitation (CPR);

Provisions with a licensed general hospital, private physician or clinic, ensuring emergency medical and psychiatric services to juveniles, 24 hours a day seven days a week, 12 months a year;

Provisions for sick call to be conducted seven days a week, 12 months a year;

Provisions for 24 hour staff supervision for federal juvenile offenders if they are confined to hospitals for treatment; and

Provisions for Human Immunodeficiency Virus (HIV) education program for staff and juveniles.

2. The contractor must provide mental health services for juvenile offenders in need of such services. Such services shall include, but should not be limited to appropriately licensed psychologists, psychiatrists, and other mental health professionals who meet educational and licensed/certification criteria specified by their respective professional discipline. Through the BOP, the Bureau's Sector Health Services Specialist will review and make the final decision regarding the requests for reimbursement for local care.

3. Suicide Prevention and Intervention: In consultation with the facility's qualified mental health professional, an approved comprehensive suicide prevention and intervention plan must be submitted in response to the request for proposal. This suicide prevention plan must reference policies and procedures for providing staff with guidelines for the management of potentially suicidal juvenile offenders 24 hours a day, seven days a week, 12 months a year. At the very minimum this plan must include:

Provisions for pre-service and annual training of all staff in identifying potentially suicidal juvenile offenders and implementing appropriate interventions;

Procedures ensuring properly trained staff provide direct and continuous observation and supervision of all federal

juveniles on suicide alert, one-on-one, or suicide watch;

Under no circumstances will a juvenile assume this responsibility; and

The comprehensive suicide prevention and intervention plan must be included in the facility's Operations Manuals. A copy must be submitted to BOP, after award. It is the responsibility of the contractor to review, at a minimum, once a year, the facility's policies and procedures on suicide prevention and intervention. The BOP must receive written notification of any changes to policy.

4. It is the responsibility of the contractor to ensure written policies and procedures, which have been duly reviewed and approved by a psychologist and physician, describe guidelines for the use of all forms of restraints, chemical agents, cavity searches, special housing, and suicide prevention and intervention.

5. It is the responsibility of the contractor to provide routine and emergency dental care and hygiene under the direction of a licensed dentist. All dental personnel providing services must be licensed, registered, or certified as required by federal and state law.

C. Mail

1. The contractor must submit written policies and procedures governing juvenile offender correspondence which incorporate the federal requirements for Special Mail, delineated in the Bureau's Mail Management Manual. The contractor must also reference American Correctional Association Standards for Juvenile Training Schools for additional guidance.

2. There is no limit on the volume of mail a juvenile offender may send or receive, except where there is clear and convincing evidence to justify such a limit.

3. All restrictions on the receipt of incoming mail will be approved by the BOP.

4. Incoming and outgoing mail will not be held in excess of twenty-four (24) hours, except on weekends and holidays. Inspection of juvenile offender mail to intercept cash, checks, money orders and contraband will be performed. If contraband is

seized, a receipt identifying the item seized will be given to the sender and the addressee. Cash or money orders will be deposited in the juvenile's account and the juvenile will be notified.

5. Written policy and procedures must govern the disposition of juvenile offender contraband.

6. Juvenile offenders must be permitted to send sealed letters from the facility.

7. Written policy and procedures will be in place to ensure, once the juvenile offender has been released or transferred, all mail is forwarded to their new address. Mail will not be returned to the sender.

8. The contractor must provide the postage for mailing letters to enable the juvenile to maintain community ties and legal matters.

Contractors are encouraged to develop alternative means for juvenile offenders to communicate with their families and support systems, such as staff monitored text messaging, video chats/conferences, or other staff monitored and controlled technologies, as approved by the Bureau.

CHAPTER 18: JUVENILE OFFENDER RIGHTS

The contractor must submit policies and procedures which preserve facility safety and protects the constitutional rights of juveniles. Reference is made to American Correctional Association Standards for Juvenile Training Schools as a guide in addressing the following key essential elements and guarantees all federal juvenile offenders will have:

- A. Full access to the courts without reprisals or penalties in seeking judicial relief;
- B. Access to attorneys, to include confidential contact by telephone, uncensored mail, and visits;
- C. Access to legal assistance from law library facilities or from persons with legal training;
- D. Access to writing materials and supplies and other services related to legal matters;
- E. Protection from personal abuse, corporal punishment, personal injury, disease, property damage, and harassment;
- F. Access to daily recreational opportunities, including outdoor recreation;
- G. Reasonable freedom in personal grooming;
- H. The right to practice their religion, subject only to the limitations necessary to maintain facility security and order;
- I. Visitation, subject only to the limitations necessary to maintain facility security and order. Provide approved visitors the available local resource information for local hotel accommodations;
- J. The right to correspond with persons or organizations subject only to the limitations necessary to maintain facility security, order, and the prevention of further criminal activity;
- K. Equal access to programs and services for male and female juveniles in co-correctional facilities;
- L. Reasonable access to the general public through the

communications media, subject only to the limitations necessary to maintain facility order and security and protect the juveniles' rights;

M. Provide weekly telephone calls to allow juveniles to call and maintain contact with their family members. One call per week, ten minutes or more allowed;

N. Provide family members the opportunity to eat holiday meals with the offenders on site; and

O. Enlist local resources to supplement juvenile needs, i.e., coat drives.

CHAPTER 19: CASE MANAGEMENT

The contractor must submit written policies and procedures addressing Intake, Orientation and Assessments. The contractor must reference American Correctional Association Standards for Juvenile Training Schools and the Bureau Program Statement on Inmate Classification and Program Review as a guide in developing a plan. Additionally, the contractor must ensure the following guidelines are followed:

A. The SOW requires a ratio of one case manager for every 10 juveniles. Case management staff will review file materials and conduct an in-person interview on all commitments within 2 weeks of their arrival to determine:

1. Appropriate commitment - to determine proper execution of Judgment & Commitment Order;

2. Security assessment - to determine appropriate security placement. A custody review will be performed in all questionable cases, and the results promptly referred to the BOP; and

3. Medical/Mental/Dental assessment - to determine immediate and long-term needs.

A PREA assessment must be completed to determine the risks and needs of a juvenile offender regarding housing and programming assignments. The assessment must be reviewed, within 30 days of arrival, to determine if the initial assessment remains valid or new information impacts the initial assessment.

B. The contractor must provide each offender with a program orientation, within 2 weeks of arrival, and a handbook, upon arrival at the facility, which outlines at least:

- Programmatic expectations;
- Mail;
- Visitation;
- Program description;
- Grievance procedures;
- Telephone; and
- Facility sanctions.

C. The facility's discipline policy, as previously outlined in

this SOW, will be discussed with each juvenile offender, and the juvenile offender will sign for the receipt of copies of the Prohibited Acts and Rules and Regulations. The orientation handbook must be provided to the COS within two weeks of contract award. The handbook will be reviewed and approved by the BOP.

D. The contractor must submit written policies and procedures complying with the Bureau requirement for which a complete assessment of each juvenile be conducted within two weeks of the juvenile's arrival at the facility. The assessments are to serve as the basis for the development of an Individual Program Plan (IPP). Each juvenile shall be assessed by properly trained and qualified staff using appropriate assessment instruments to determine treatment needs. Assessments and Individualized Program Plans shall particularly address the needs of juveniles with histories of:

- Physical disabilities;
- Learning disabilities;
- Substance use;
- Chemical dependency;
- Sexual and physical abuse;
- Mental illness;
- Sex offenses;
- Violent offenses;
- Escape
- Developmental delays;
- Emotional disturbance;
- Neglect;
- Gang involvement;
- Fire starting; and
- Animal cruelty.

E. In cases of learning disabilities, the contractor is to ensure an Individualized Educational Plan (IEP) is incorporated into the juvenile's Individualized Program Plan, in accordance with the requirements of the Individuals with Disabilities Education Act. Each IEP shall, at a minimum, include:

1. Annual goals: These statements are to include time bound and measurable goals which are developed in light of both the juvenile's abilities and

disabilities.

2. Instructional methodology: The methods available to assist teachers in identifying effective teaching strategies.
3. Least Restrictive Environment: This type of environment is used to transition or "main stream" juveniles into a regular classroom setting.

F. The contractor must ensure, whenever possible, the juvenile, counselor, parents and/or guardians are involved in the development and review of the Individualized Program Plan.

The Individualized Program Plan must include short-term and long-term treatment objectives which not only meet the needs of the juvenile, but also address public protection, juvenile accountability, victim awareness, successful reentry into society, and the acquisition of skills which will contribute to the reduction of future delinquent or criminal behavior.

G. The contractor must ensure a juvenile's progress is reviewed with him/her at least every two weeks and quarterly Progress Reports are mailed to the BOP and/or USPO. The quarterly progress report must document the juvenile's participation, or non-participation, in programs. A copy of each progress report will be signed by the juvenile and contractor's representative (including title). At a minimum, these quarterly progress reports must discuss:

- Individualized Program Plan
- Objectives/goals
- Program compliance/re-assessments
- Incident reports
- Amenability to treatment
- Health
- Release/community reintegration
- Family visitation

H. Although juveniles in secure juvenile facilities do not have unsupervised access to the community, the BOP and/or USPO must approve a juvenile's involvement in any activity outside the secure perimeter. Juveniles placed in work release are subject to the chapter on Work Release programming.

I. The contractor must provide appropriate safeguards and locked fireproof file cabinets for juvenile files, to be located in secure areas in which juveniles have no routine, unmonitored access. The contractor must abide by the requirements regarding the disclosure of juvenile records in Federal Law (18 USC 5031 through 5040, particularly 5038) and the Bureau Program Statement on Juvenile Delinquents, Juvenile Justice and Delinquency Prevention Act. The same level of protection must be utilized if the facility maintains records electronically.

J. Juvenile offenders identified by the RRM as sex offenders, must be provided one hour of individual and one hour of group sex offender counseling each week, by a qualified sex offender treatment provider, who is appropriately licensed in the state in which services are being provided.

K. The contractor must provide the sex offender treatment philosophy and assessment tools in the technical proposal. The contractor must provide a summary of treatment goals and progress, upon the request by the Bureau. A discharge summary is required two weeks prior to the date the juvenile will depart the facility. This summary will also be shared with the JA/JSS/BOP as part of the terminal report.

CHAPTER 20: PROGRAMMING OF JUVENILES

The contractor must submit written policies and procedures which require each federal juvenile in custody to receive at least 50 hours of formal quality programming per week, 12 months a year. The contractor must reference all applicable sections in American Correctional Association Standards for Juvenile Training Schools, and the Bureau Program Statements on Minimum Standards for Administration, Interpretation and Use of Education Tests, Literacy Program (GED Standard), and English-as-a-Second-Language Program for guidance and direction. All programs must be evidence based or have been independently validated with outcome measures.

A. The amount of time devoted to individual activities is to be determined by the Individualized Program Plan. Formal programming must have time bound measurable goals which are meaningful, evidenced based, and responsive to the educational, cultural, emotional, physical, and spiritual needs of the unique juvenile offender population. The SOW requires the formal programming of federal juveniles be provided by trained and qualified staff. All programs, services, and opportunities must be provided without discrimination on the basis of race, creed, or national origin. To the extent possible, the programs must be culturally sensitive and present programs and activities specific to the unique needs of each ethnic group in the population being served.

B. The contractor must submit policies and procedures ensuring the Bureau's requirements for 50 hours of quality programming are being met. Regardless of the terminology used to refer to the Individualized Program Plan, Individualized Treatment Plan, Individualized Case Plan, IPP or ICP, the elements of such programming must be written, must be individualized, and shall include short-term and long-term objectives which are realistic and achievable. The contractor is responsible for documenting the weekly programming provided for each juvenile. The IPP must be reviewed bi-weekly and updated as objectives are completed. The Bureau requires Individualized Program Plans for every juvenile in custody. The contractor is to ensure all information obtained, as a result of a juvenile's intake, orientation and any assessments, is incorporated into a formalized Individualized Program Plan addressing, at a minimum, the following needs:

- Education;

- Vocational Training;
- Independent Living Preparation;
- Specialized Treatment Goals and Objectives;
- Counseling and Psychological Services;
- Substance Use
- Structured Recreational Activities;
- Religious Services;
- Cultural Services; and
- Financial Responsibility.

C. Educational activities for juvenile offenders must include, but shall not be limited to, formal education at the appropriate level, whether it is elementary, secondary, college or General Equivalency Development (GED) preparatory classes.

All juveniles who are younger than the state mandated compulsory education age must be enrolled in a school program.

The educational program will provide each enrolled juvenile with a minimum of four hours of school each week day, 12 months per year. Education must be provided in an environment conducive to learning, by teachers who have the appropriate credentials and/or licensing in the state in which the services are being provided. Correspondence courses for juveniles with post high school level education must be made available on a case-by-case basis.

The contractor will provide library services which, at a minimum, contain:

- Reference materials for completing classroom assignments;
- Reference materials for legal matters;
- Educational newspapers, magazines, novels and materials for pleasure reading;
- Copy of the United States Code; and
- Inter-library resources.

An internal audit/evaluation will be conducted yearly to determine the effectiveness of the educational program. Copies will be forwarded to the facility manager and the BOP.

D. The contractor must provide a vocational training program which is geared towards the job-training needs of the juvenile

population. Emphasis must be placed on preparing the juvenile for future employment. Vocational training may be integrated into a juvenile's educational plan.

In assessing the vocational training programs to be offered, the contractor shall consider the local, regional and national job market and provide training in areas where skilled workers are in demand.

A minimum of one vocational program must be provided to juveniles at all times, throughout the life of the contract. The contractor will submit documentation on these programs with the technical proposal.

E. The contractor must provide an Independent Living Preparation course for juveniles who meet the educational requirements. This course may supplement other educational opportunities, but shall not be considered a substitute for formal education, especially for juveniles who are required to attend school, due to the mandatory school age. The course must consist of training modules preparing the juvenile to make the transition to the community and adulthood. Modules must be conducted by qualified individuals, and may not be conducted by direct line staff. Community members with subject matter expertise/certification shall be enlisted to present the courses. Modules will enable juveniles to acquire various skills, and shall include, but not be limited to:

1. A Career Development Module to prepare juveniles to enter the work force. In order for that goal to be achieved, each juvenile will participate in a job readiness program. At the very minimum, this module must teach the following skills:

- Introduction to general work force expectations;
- Generalized employment skills;
- Communication skills in the work place;
- Resume preparation;
- Completion of job application;
- Interviewing techniques; and
- Job offer assessment.

2. A Money Management Module to promote personal financial responsibility. This module shall include, but not be limited to, the following skills:

- Introduction to math fundamentals;
- Instruction on maintaining checking and savings accounts;
- Instruction on establishing and maintaining a budget; and
- Introduction to thrifty spending techniques.

3. A Health Education Module to teach the juvenile the essentials of nutrition, stress management, and physical fitness. At a minimum, this module shall teach the following skills:

- Healthy Nutrition;
- Meal preparation;
- Consumer education;
- Stress Management;
- Maintaining healthy lifestyle; and
- Seeking self-help groups.

4. A Cognitive Skills Module to prepare the juvenile to interact with others in the community setting. This module shall teach the following:

- Pro-social values and behavior;
- Anger management;
- Rational thinking;
- Conflict resolution;
- Social skills;
- Communication skills; and
- Emotional self-regulation.

5. A Crime Victim Awareness Module designed to focus on victim empathy through activities which demonstrate the psychological harm crime victims experience as a result of the perpetrator's criminal behavior. The contractor will define the utilization of this program, as it is to be a separate program from the sex offender treatment victim impact class.

6. A Parenting Skills Module to prepare juveniles to accept responsibility for their present or future role as parents, and as role models for others. At a minimum, this module shall teach the following:

- Sex education;
- Child development and care;
- The effects of separation on children;
- Appropriate parental discipline;
- Planning family activities;
- Child and parental interaction;
- School requirements for children; and
- Marriage enrichment

7. A Gang Awareness module to enable juveniles to return to a community setting and avoid involvement in gang activities or affiliations. This module shall provide the juvenile with skills necessary to resist gang recruitment efforts and to depend on pro-social problem solving techniques.

F. The contractor must provide, at a minimum, 30 hours of substance use education for all juvenile offenders. Substance abuse education is not a substitute for chemical dependency treatment. Although videos may supplement the educational aspects, they are not considered a substitute for actual instructor/juvenile interaction and discussion.

G. The contractor must provide Substance Use Treatment for juveniles whose assessment and/or clinical interview, by a licensed chemical dependency counselor, indicate a need for this treatment. The Substance Use Treatment program must be individualized to meet the offender's needs and consist of group, individual counseling, and drug testing, as deemed necessary by the licensed counselor. At least one hour of group counseling and one hour of individual counseling per week is mandatory for juvenile offenders who are diagnosed as chemically dependent as a result of a clinical interview and/or assessments. At a minimum, therapists working with chemically dependent juveniles must be a Certified Addictions Counselor or equivalently licensed in the state in which the services are being provided. Para-professionals with appropriate training and experience may be utilized, provided they are under the direct supervision of a professional counselor in the same room. Records must be kept of all sessions. If the counseling is provided by someone other than contractor staff, the contractor must maintain documentation (i.e., copies of paid invoices) to verify services have been rendered.

The contractor must maintain a urine surveillance program which complies with the Bureau's Program Statement on Urine

Surveillance and Narcotic Identification to detect and deter illegal drug use.

H. The contractor must provide Counseling and Psychological Services that are consistent with the needs of each juvenile based on assessments and/or a clinical diagnosis by a licensed therapist. A juvenile's Individualized Program Plan shall address treatment needs, in addition to a treatment plan which outlines how those needs are being met for juveniles who are in need of:

- Substance Use Treatment;
- Sex Offender Treatment;
- Treatment for Emotional Disturbance;
- Violent Offender Treatment; and
- Treatment for Mental Illness.

Individual and family counseling must be made available to all juveniles, their families, and significant others, if feasible. Counseling must be provided by qualified professionals who have the appropriate state license. The counseling staff must be able to obtain additional consultation services when the need arises. The contractor will provide the plan of action to include these services in the technical proposal.

The contractor must provide one hour of individual and one hour of group sex offender treatment to all juveniles identified by the BOP as sex offenders. This counseling must be provided by a qualified individual who is appropriately licensed, approved by the BOP. Preference is given to the sex offender providers utilized by USPO, to ensure a continuum of treatment.

The facility must have resources available in the community to assist counseling staff and to receive referrals for assessments when needed.

Staff must be sensitized to and trained in dealing with issues of juvenile sexual, emotional, and physical abuse. Counseling staff must incorporate abuse issues into counseling sessions when appropriate and clinically beneficial.

I. The contractor must provide structured recreational activities which may include, but are not limited to:

- Supervised indoor and outdoor sports;

- Supervised table games; and
- Supervised hobby crafts

The contractor must provide religious services and activities for the juvenile offender population, subject only to the limitations necessary to maintain facility order and security. Provisions shall be made to accommodate all universally recognized religions and afford access to appropriate facilities, members of the clergy, Native American medicine men or spiritual advisors, publications and religious symbols, and/or opportunities to adhere to dietary, holy day, and other requirements of various faiths. Such provisions shall include accessible and private space for spiritual leaders and religious consultants to conduct pastoral counseling with juvenile offenders.

J. The contractor must provide (and include in the technical proposal) opportunities for all juveniles to participate in cultural activities in an effort to enhance their self-awareness and increase their cultural knowledge (i.e., Native Americans). Such opportunities shall increase their awareness and appreciation for their cultural heritage and the cultural heritage of others.

In cases of Native Americans, the program must integrate culturally specific elements which are sensitive to their unique needs. The contractor is required to address the spiritual needs of this population by providing access to sweat lodge, medicine men and/or spiritual leaders. Participation in Native-American ceremonies, access to Native-American literature, participation in "talking circles" and traditional peacemaking is strongly encouraged. Reasonable provisions for visitation by the extended family, tribal elders and tribal members shall also be made, provided it does not interfere with the safe operations of the facility.

Juvenile offenders must have access to fresh air recreation on a daily basis. Juveniles can choose to utilize indoor recreation areas during inclement weather. Recreational areas must be sufficiently sized to permit large muscle activities and foster positive peer and staff engagement.

CHAPTER 21: RECORDS AND REPORTS

The contractor must submit written policies and procedures dictating the confidential management of juvenile offender case records and the reporting of serious incidents, prior to performance. Reference must be made to Part 1, Section E, American Correctional Standards for Juvenile Training Schools, and Form 583, Report of Incident, which must be completed in accordance with the Correctional Services Manual.

A. These records will include:

- Initial intake information;
- Medical records, when available;
- Signed release of information form;
- Rules of residence and disciplinary policy, signed by the juvenile offender;
- Sentence computation data (to be provided by the government);
- Documented legal authority to accept the juvenile offender; and
- Referrals to other agencies.

B. The contractor must establish procedures to limit access to records to persons and public agencies which have both a need and a right to know and can demonstrate that access to such information is necessary for juvenile justice purposes. Written guidelines must regulate juvenile access to their records.

C. Upon the termination of the juvenile offender's confinement, the contractor is to forward the juvenile offender's entire file record to the BOP within three working days of the juvenile offender's release. The contractor may retain copies of public information which can identify the former juvenile offender, copies of research data which have been de-personalized, and copies of reports generated by the contractor.

D. The contractor must ensure case records are safeguarded and regularly inventoried. This inventory is to be documented.

E. The juvenile offender will sign a "Release of Information Consent Form" prior to the release of information, and a copy of the signed consent form will be maintained in the individual's case record.

F. All offender files will be kept in a locked, fireproof cabinet located in an area in which offenders do not have unsupervised access.

CHAPTER 22: ESCAPES, DEATHS, and SIGNIFICANT INCIDENTS

The contractor must submit policies and procedures which outline the immediate notification process in the event of an escape or death. The notification list shall include the BOP, parents/guardians and authorized personnel, such as the United States Marshals and the USPO. The contractor must reference Part 3, Section B, American Correctional Association Standards for Juvenile Training Schools, and the Bureau Program Statements on Escape/Death Notifications and Autopsies, Authority to Order.

Additionally, the contractor will immediately notify the BOP by telephone in the event of a significant incident, defined as follows:

1. Major Disturbance: to include riots, civil disturbances, and hostage incidents;
2. Death of a juvenile offender;
3. Juvenile offender suicide attempts;
4. Assaults on staff or juvenile offenders resulting in injury;
5. Injury to juvenile requiring medical attention;
6. Any adverse incident which attracts unusual interest or national or local publicity. The contractor must fax or email the article to the BOP, as soon as they become aware of the publicity;
7. Food/work strikes;
8. Escape attempts;
9. Fires involving injury or property damage;
10. ANY use of restrictive housing on a juvenile;
11. Bomb or bomb threats; and
12. Staff misconduct which would directly discredit the criteria set forth in the SOW.

A narrative report will be forwarded to the BOP within one calendar day of any of the above-mentioned incidents.

CHAPTER 23: RELEASE FROM SERVICE OF SENTENCE

The contractor must submit policies and procedures for preparing federal juveniles for release back into the community. The contractor must reference Part 5, Section I, American Correctional Association Standards for Juvenile Training Schools, Title 18 USC 4281, and the Bureau Program Statements on Detainers and the Interstate Agreement on Detainers, Central Inmate Monitoring System, and Sentence Computation Manual.

Additionally, the contractor must consult with the USPO and/or the BOP throughout the juvenile's custody to discuss release plan issues, such as release residence, aftercare programs (i.e., substance use, mental health, sex offender treatment, etc.), reporting to the USPO and family/ community support. Release plans must be forwarded to the BOP and USPO 4-6 weeks prior to the juvenile's release.

CHAPTER 24: SEXUAL ABUSE/ASSAULT PREVENTION AND INTERVENTION

A. GENERAL DEFINITIONS. Sexual abuse/assault affects both juvenile offenders and correctional employees. It also has an adverse impact on the orderly running of correctional facilities.

Sexual abuse/assault/misconduct is defined as verbal or physical conduct of a sexual nature directed toward a juvenile offender by another juvenile offender, a staff member, an agent, or a volunteer of a corrections agency, department or private organization. Sexual misconduct by corrections staff against a juvenile offender must be prohibited by policy. Sexual misconduct, as it relates to juvenile offenders, is any sexual advance, welcome or not, by a juvenile offender, staff member, agent or volunteer of a corrections agency, department or private organization. It is illegal and a violation of federal law.

P.L. 108-79, Prison Rape Elimination Act of 2003 (PREA), seeks to eliminate sexual assaults and sexual misconduct of offenders in correctional facilities to include all residential reentry and juvenile contract facilities. The contractor must maintain a zero-tolerance standard for sexual abuse. A specific policy which addresses PREA compliance will be maintained by the contractor. The facility must be in full compliance with PREA standards which apply to Community Confinement Facilities. The PREA coordinator must be designated in writing and submitted to the BOP prior to the contract performance date. In accordance with provisions of PREA, the contractor must be audited by a certified PREA compliance auditor at no cost to the BOP. Copies of all audit material will be provided to the BOP.

B. RESPONSIBILITIES. The contractor must develop and implement a comprehensive staff training program addressing the facility's sexual abuse/assault prevention and intervention program. Written policy, procedure, and practice must provide that all staff receive such training during pre-service training, and on an annual basis as part of the facility's in-service training plan.

The contractor shall develop and make available to all juvenile offenders, an education program, which addresses the subject of sexual abuse/assault. The educational program must include topics such as, recognizing behaviors which are inappropriate, harassing, or assaultive; how to seek protection; privacy

rights; medical and psychological programs for victims of abuse; how to make confidential reporting of sensitive issues to facility staff, the Bureau, the OIG, and/or local law enforcement.

The contractor must immediately report all sexual misconduct allegations to the Bureau's Residential Reentry Manager.

The contractor is to establish local intervention protocol which offers the juvenile offender immediate protection from the assailant. The contractor must have procedures in place, which ensure a medical examination, and counseling by a qualified victim advocate and licensed mental health professional occurs within 24 hours of the incident, ideally within hours following emergency care.

CHAPTER 25: JUVENILES UNDER SUPERVISION

The contractor must develop a plan which will address the process for the intake and release of juveniles in custody as a condition of probation, under the supervision of the USPO. The contractor must coordinate communications between the facility staff, BOP and the USPO to ensure, at the very least, the following issues are addressed during the juvenile's custody period:

- Individualized Program Plan;
- Request for Medical/Mental/Dental Services;
- Special Incidents;
- Specialized treatment needs (substance use, mental health and sex offender treatment as appropriate);
- Quarterly Reports;
- Progress Reports;
- Subsistence;
- Release Plans;
- Instructions from the Court;
- Costs for Services; and
- Visitation.

CHAPTER 26: JUVENILE WORK RELEASE PROGRAMS

Definition

Work release programs are designed to allow offenders the opportunity to leave the secure facility, upon the approval of the BOP, to report to work or community service for the offender's scheduled work shift and then return to the secure facility upon the completion of the offender's scheduled work shift.

The BOP utilizes secure juvenile facilities, with work release programs, to provide prerelease assistance for offenders returning to the community from institutions. Juvenile Probationers and direct court commitments, to a lesser extent, are also required to reside in a secure juvenile facility to participate in these programs. The contractor must provide a detailed description about the program, to include, but not limited to, searching an offender and his/her property for contraband prior to sign out and/or upon his/her return to the secure facility, tracking the accountability of the juvenile(s) during their approved, scheduled work release hours from the time a juvenile is signed out of the facility until they are signed in upon return, the transportation of the juvenile(s) to and from their approved worksite, and written policies and procedures set in place in the event of a significant incident should occur (i.e., escape, medical emergency, etc.). All records for juveniles approved for work release must be maintained by facility staff and all documentation for juvenile movement completed with dates and times of occurrence.

The capability to provide a more restrictive environment for certain cases is required. When juvenile offenders are placed in work release programs to serve short sentences of imprisonment or for community confinement as a condition of probation or supervised release, the general conditions are to be more restrictive and sanction oriented, than for offenders who are in pre-release status from institutions.

Program Components

In consultation with BOP office, offenders in work release programs shall be classified into one of two program components: pre-release or community corrections. Offenders in all components are provided the same general program resources, but the privileges and supervision requirements are different.

Unless directed otherwise by the BOP, transfers from secure juvenile facilities will be initially placed in the Pre-Release Component, and direct court commitments and offenders under supervision (including community confinement cases) will be placed in the Community Corrections Component (CCC).

Pre-Release Component - residents in this component are in the work release program for the purpose of making a transition from an institutional setting to the community, or as a program resource while under supervision.

Community Corrections Component - residents in this program component are in a work release program as a punitive sanction. Conditions are generally more restrictive than the pre-release component. Except for employment, program needs and any community service directed by the court, residents in this component are ordinarily restricted to the center. Passes, furloughs or other absences from the facility require advance approval of the BOP. Recreation activities are ordinarily provided for in the contract facility. If in-house accommodations do not exist, then recreation will be made available in the community through limited and clearly defined sign-out procedures.

Employment

Gainful employment or community service of juvenile inmates is a fundamental expectation of the BOP for juveniles in the work release program. As such, juvenile contract facility staff will ensure the resident's employer is aware of the inmate's legal status. Facility staff is required to verify employment by random, on-site visits, and document the visits.

If facility staff believes it is essential for a resident to maintain a beeper, cellular telephone, etc., in the performance of his/her work, the following procedure shall be followed:

Inmate will make a written request to the facility staff stating the specific need and use for the electronic communication equipment. The facility staff will verify the legitimate need and will make approval decisions based upon facility policies and forward this information to the BOP for final approval.

Religious Activities

The BOP is supportive of allowing inmate's on work release status to have access to local religious services. Each request for religious activities shall be handled by facility staff on a case-by-case basis and the BOP contacted for guidance when there are unusual requests or concerns. There shall be a system of accountability for inmates participating in religious activities.

Urine Surveillance

Juvenile offenders will not be assessed financially for drug and/or alcohol testing. All urine testing shall be conducted on a "surprise", unscheduled basis.

Positive tests: Any sample positive for the presence of a controlled substance or its metabolite, shall be reported immediately to the BOP. An incident report shall be prepared for those positive test results without justification (i.e., authorized medication, etc.).

Inmates who refuse to submit to an alcohol or drug test, either through word or action shall be removed from the work release program and the BOP shall be notified within 24 hours.

CHAPTER 27: RESEARCH AND EVALUATION

All federally sentenced juvenile offenders are placed in contract programs, therefore, it is the responsibility of the contractor to generate and gather data for research and evaluation purposes. The contractor must be aware of the confidentiality requirements of Chapter 18 of the United States Code, Section 5038, which prevents the release of information to unauthorized persons. The contractor must reference Part 1, Section F and Part 4, Section C of American Correctional Association Standards for Juvenile Training Schools when submitting written policies and procedures which establish the facility's system(s) for juvenile participation in research, information storage and retrieval, master indexes, daily reports, evaluation, and research. Additionally, the contractor must respond to all Bureau surveys, questionnaires, or request for data, in a timely manner. Contractor staff and the BOP are considered instrumental in identifying information needs, and should be consulted when policies and procedures require changes or revision.

Failure to respond to a monitoring report, letter, or any BOP request, within the stipulated time period, may result in adverse contract action to include monetary sanctions up to and including contract termination.

CHAPTER 28: INSPECTIONS

In the event an offeror changes their proposed site during the negotiation process after the BOP has inspected the facility, the offeror shall be required to reimburse the BOP for all reasonable costs associated with the re-inspection of the new proposed site(s), due to the offerors change in proposed facility.

The contractor must submit policies and procedures which ensure the performance of services is in accordance with this SOW. Reference is made to all sections in Part 2, and Part 4, Sections A and B, American Correctional Association Standards for Juvenile Training Schools for guidance and direction.

A. Additionally, the BOP, the COS, and/or other Bureau program area experts will conduct on-site visits for monitoring purposes and to provide technical direction. Technical Direction is defined without limitation as:

1. Directions to the contractor which redirect the contract performance effort, shift work emphasis, require pursuit of certain lines of inquiry, fill in details or otherwise serve to accomplish the actual scope of work;

2. Supplying information to the contractor which assists in the interpretation of technical portions of the SOW;

3. Receiving, reviewing, and inspecting reports as well as information provided by the contractor to the government; and

4. Evaluating performance and certifying all invoices for payment.

B. The BOP will establish a monitoring schedule consisting of announced and unannounced visits which focus on service delivery and requirements, as outlined in the SOW. The results of these monitoring visits are to be brought to the attention of the facility's Director/CEO/Authorized Negotiator through a narrative monitoring report.

C. The monitoring report contains the results of the inspection and identifies deviations from the SOW as findings.

1. Findings are defined as violations of the contractual agreement between the contractor and the Bureau of Prisons.

2. Recommendations are defined as direction, guidance and suggestions in areas which need improvement, but are not violations of the agreement.

D. Additionally, the monitoring report notes the desired corrective action for each finding, or repeat finding. Upon receipt of the report, the facility administrator/CEO/Authorized Negotiator is responsible for drafting a response to be forwarded to the BOP within the time frame specified. The response must note corrective action taken and/or in the event constraints are identified, will establish a realistic time frame for completion of corrective action.

E. The Residential Reentry Manager "closes out" monitoring's by letter when the contractor's written response has indicated all deficiencies have been corrected, or acceptable plans with appropriate time frames have been outlined to correct deficiencies.

F. Failure to respond to a monitoring report or to take action to correct all findings may result in the termination of the contractual agreement.

G. CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (CPARS). The CPARS is an annual assessment conducted by the Contracting Officer's Representative (COR). The rating period represents 12 months of contract performance and ordinarily is conducted at the end of each performance period as identified on the Contract Award document. Upon review and approval by the Sector Management Team, the COR sends the CPARS to the Contracting Officer (CO), who reviews the document then provides it to the contractor for comments. The contractor will have 15 working days to make comments and return the form to the CO.

1. **Ratings.** The CPARS transmits an adjectival rating based on an assessment of the contractor's performance. The assessment must include and incorporate the findings of the interim and full monitoring reviews performed during the rating period specified. Consideration may also be given to other documented interactions with the contractor (i.e., written correspondence). The assessment must discuss the strengths and weaknesses of the contractor performance during the specified time period.

a. **Rating Period.** The rating period represents 12

months of contract performance as identified on the contract award document. The rating is due at the end of each base period and at the end of each subsequent option year. A CPARS is also completed at contract expiration or termination.

b. **Assessment.** The COR assesses the contractor's performance in six areas:

- Accountability
- Programs
- Community Relation
- Site Validity and Suitability
- Personnel
- Communications/Responsiveness

(1) **Accountability.** This factor addresses the contractor's ability to maintain juvenile offender accountability in accordance with their plans, procedures, and practices to ensure they are accurately accounted for while in and out of the facility. This may include access to the community for educational, employment or participation in community services projects. Has this strategy been tailored to the geographic area? Have there been any patterns or unresolved breaches of accountability during the rating period?

(2) **Programs.** Does the contractor have a strategy for assessing, developing and implementing individualized program plans addressing the treatment needs for juvenile offenders? How effective has the contractor been in providing programming to juveniles which include, but not limited to, educational, vocational, counseling, independent living preparation, community reintegration and family reunification opportunities?

(3) **Community Relations.** Does the contractor have a strategy for educating and interacting with the local community in their efforts to acquire and maintain public support, prior to performance? What efforts have been made during this rating period to enhance positive community relations? Discuss the functions and composition of the Community Relations Board.

(4) **Site Validity and Suitability.** During this rating period, has the contractor complied with all applicable local, state, national health, safety, environmental laws,

regulations, Executive Orders, and building codes? Are zoning and occupancy permits still valid?

(5) **Personnel.** During this rating period has the contractor ensured adequate qualified staff have been recruited and trained with the necessary skills and integrity to work with juvenile offenders? Has staff met the orientation and annual training requirements? Has staff received training in the Bureau's standards of employee conduct as defined by the SOW for juvenile facilities? Has the contractor maintained an organizational chart and staffing schedule which outlines the staff to juvenile ratio as required by the SOW? Have there been patterns or unresolved integrity issues during this time?

(6) **Communications/Responsiveness.** During this rating period, has the contractor been responsive to the Bureau's needs, requirements and directions? Have the lines of communication been open during this time?

c. **Adjectival Ratings.** Based on the written narrative, an adjectival rating will be determined. The COTR must assign one of the following ratings to each Factor:

Very Good: Contractor's performance meets or exceeds the requirements of the contract. One or more significant strengths exist. Weaknesses may exist, but none are considered significant and are easily correctable.

Acceptable: Contractor's performance meets the contract's minimum requirements. They have demonstrated they have acceptable solutions for meeting the needs and objectives of the program. Strengths and weaknesses may exist. The weaknesses are correctable.

Poor: Contractor's performance does not meet the requirements of the contract. Their performance has shown they have poor solutions for meeting the needs and objectives of the program. Weaknesses outweigh any strength(s) that may exist. The weaknesses are difficult to correct.

Unacceptable: Contractor's performance fails to meet the requirements of the contract. Their performance shows they have an unacceptable solution for meeting the needs and objectives of the program. There are numerous weaknesses. The weaknesses will be very difficult to correct or are not correctable.

d. **Calculating the Overall Adjectival Rating.**

(1) Determine if there is a majority of adjectival ratings used for each of the six factors. The majority rating will be the overall rating (i.e., four acceptable ratings and two very good ratings will result in an overall rating of acceptable).

(2) If there is a tie in the overall adjectival rating, the COTR will write a justification explaining why he/she made the final rating determination.

(3) If the contractor has been terminated for performance related issues during the rating period the adjectival rating will be "Unacceptable."

2. **Responsibilities.**

a. **COR.** The COR and Sector Management Team (SMT) must concur on the overall adjectival CPARS rating. The COR will prepare the CPARS and forward it electronically to the SMT for review. After approval by the SMT, the SMT and COR will sign the CPARS electronically and forward it to the CO. The CO will complete a review of the form and, if necessary, may request the COR to clarify information on the CPARS. COR clarifications will need to be routed through the SMT prior to being forwarded to the contracting officer. The responsible BOP office will maintain a copy of the finalized CPARS packet for their contract file. The form shall be forwarded to the contracting officer within 30 days after the end of the rating period.

The CO will forward the CPARS to the contractor for their review and comments. The contractor will be allowed 15 working days to respond. Upon receipt of the contractor's comments, the CO will determine if a different rating is warranted. Changes in ratings will be communicated by the CO to the contractor and COR within five business days.

b. **Contractor.** The contractor must respond to all inspections, monitoring reports, CPARSs, and BOP inquiries within the appropriate time frame. The contractor must take appropriate actions to correct deficiencies and improve operations, and ensure adequate administrative controls and

monitoring systems are in place to prevent the deficiency from recurring.

c. **Repeat Deficiencies.** A repeat deficiency is a serious issue. Therefore, the authorized negotiator must provide a separate response to the BOP. The authorized negotiator must describe the measures and internal controls to be implemented to ensure the problem will not occur again, as well as explain why the problem was not corrected from the prior review. The authorized negotiator's response is due no later than five calendar days after receipt of the report.

LIST OF ATTACHMENTS

Attachment A.....	REQUEST FOR APPROVAL FOR MEDICAL TREATMENT
Attachment B.....	LIST OF BOP FORMS
Attachment C.....	REQUEST FOR DNA COLLECTION
Attachment D.....	DNA FACT SHEET

		Federal Bureau of Prisons RESIDENTIAL REENTRY		Date: _____ Facility/Facility Code: _____
REQUEST FOR APPROVAL FOR MEDICAL TREATMENT AND REIMBURSEMENT				
To: _____ Residential Reentry Manager		From: _____ Facility Staff / Title Email: _____ Fax: _____		
Inmate Name: _____		☐ M ☐ F	DOB: _____	
Register Number: _____		Release Date: _____		
DATE(S) OF SERVICE: _____				
Reason/type of treatment/medication requested (listed medications requested must include quantity, dosage, and treatment purpose): _____ _____ _____				
Expected Type and Duration:	☐ Routine (follow-up not likely) ☐ Routine (expect 1-2 additional appointments) ☐ Emergency (follow-up likely) ☐ Recurring (on-going monthly charges likely)			
Provider Information:	Name: _____			
	Address: _____		City: _____	State: _____
Payment Options:	Phone Number: _____			
	Estimated Cost:			
	Inmate Medicare Eligible?		☐ YES	☐ No
	Inmate on Disability?		☐ YES	☐ No
	Insurance Available?		☐ YES	☐ No
Local no-cost/low-cost/Medicare rates available		☐ YES	☐ No	
List any medical problems diagnosed or treatment currently on-going: _____ _____ _____				
**This form must be completed in advance and approved prior to treatment for all medical/dental treatment and medications, other than inmate emergencies and physicals. All emergencies must be reported to the RRM via telephone after medical treatment is sought or received and this form completed. Additionally, this form must be attached to invoices requesting reimbursement for services in accordance with medical billing requirements, including required documentation. Medication reimbursement requires documentation of prescription recipient, medication provided, and delivery/service date.				
Reviewed By: _____ Residential Reentry Manager			Date: _____	
For mental health inmates requiring medication: Reviewed By: _____ Community Treatment Services			Date: _____	
Approved: ☐ Yes ☐ No By: _____ Health Systems Specialist			Date: _____	

LIST OF BOP FORMS
(Forms Provided by BOP)

ADMINISTRATIVE REMEDY APPEAL

CENTER DISCIPLINE COMMITTEE REPORT

CENTRAL OFFICE ADMINISTRATIVE REMEDY APPEAL

CHECKLIST FOR CDC CERTIFICATION

DUTIES OF STAFF REPRESENTATIVE

INCIDENT REPORT

INMATE RIGHTS AT THE DISCIPLINARY HEARING

NOTICE OF CENTER DISCIPLINARY COMMITTEE HEARING

PROGRAM STATEMENT 5216.05 JUVENILE DELINQUENTS/JUVENILE JUSTICE AND
DELINQUENCY PREVENTION ACT OF 1974

PUBLIC VOUCHER FOR PURCHASES AND SERVICES OTHER THAN PERSONAL

REGIONAL ADMINISTRATIVE REMEDY APPEAL

WAIVER OF APPEARANCE

CONTRACTOR EVALUATION

[Name of RRM]

[Addressee]

Re: Request for DNA Collection

Dear [Name of Facility CEO]:

The DNA Analysis Backlog Elimination Act (DNA Act) requires the Federal Bureau of Prisons to obtain DNA samples from all inmates with qualifying offenses, and now includes collection of DNA samples from juveniles. Currently, the Attorney General is authorized to collect DNA samples from individuals who are arrested, facing charges, or convicted or from non-United States persons who are detained under the authority of the United States. See 42 U.S.C. Sec. 14135a(a)(1)(A). An implementing regulation was published in the Federal Register on December 10, 2008 (Vol. 73, No. 238, pp. 74932-74943). The FBI analyzes submitted DNA samples and maintains the results in the Combined DNA Index System (CODIS).

The following [xx] juveniles are housed at your facility and are required to provide a DNA sample under the DNA Act. We are asking your assistance with the collection.

Inmate Name, Reg. No.

Inmate Name, Reg. No.

Included with this letter is/are [xx] DNA buccal swab collection kits. Instructions for the DNA collections are included in the kits. Also included are DNA fact sheets which may be provided to the inmates to answer any questions they may have.

If a juvenile refuses to provide a DNA sample, please bring this to the attention of this office as soon as possible. The inmate should be made aware that refusal to provide sample may result in the use of force protocols to obtain it.

To receive DNA numbers from Bureau staff for the DNA collected, your staff should contact [xxx] at [xxx] one or two business days before the collection is scheduled. Generating a DNA number during this timeframe will decrease the chance numbers will be generated in error.

Thank you for your assistance with this important matter. Please contact my office at [xxx-xxx-xxxx] if you have any questions.

Sincerely,

**Bureau of Prisons Inmate DNA Sample Collection
Fact Sheet**

The Bureau of Prisons' (Bureau) current authorities to collect DNA samples from persons are as follows:

- Title 42 U.S.C. Sec. 14135a, Collection and use of DNA identification information from certain Federal offenders;
- Title 42 U.S.C. Sec. 14135b, Collection and use of DNA identification information from certain District of Columbia offenders; and
- Title 28 C.F.R. Part 28.12.

Pursuant to these authorities, the Bureau will collect DNA samples from persons who are:

- Convicted of any federal offense (felony or misdemeanor);
- Convicted of any Uniform Code of Military Justice (military) offense (felony or misdemeanor);
- Convicted of a qualifying D.C. Code offense (as provided at D.C. Code Sec. 22-4151);
- Arrested or facing charges (pretrial inmates); and
- Non-United States persons who are detained under the authority of the United States (including the Bureau) (persons who are not United States citizens and who are not lawfully admitted for permanent residence as defined by 8 C.F.R. Sec. 1.1 (b)).

Bureau Program Statement 5311.01, *Inmate DNA Sample Collection Procedures* (effective date Feb. 1, 2011), provides the following:

- Collection of DNA via buccal swab has been incorporated into the collection method.
- Collection of DNA from juveniles is permitted.
- Consequences for refusing to provide a DNA sample include an incident report(s), progressive administrative sanctions, and possible criminal prosecution.
- If efforts to obtain a DNA sample fail, or the inmate is approaching his/her release date, standard "use of force" protocols (including standard confrontation avoidance procedures) must be invoked, using only the amount of force necessary to obtain a DNA sample. In instances where calculated use of force is necessary, it is recommended a blood sample be obtained.